

Article

The Vienna Convention and Ordinary Meaning in International Law

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I. INTRODUCTION

In the law, what is “ordinary” is ordinarily not well understood. And yet the “ordinary meaning” standard—which requires that undefined terms in legal texts be interpreted in accordance with their ordinary meanings—is perhaps the most widely cited axiom of legal interpretation.¹ So fundamental is the standard that it transcends national legal systems and assumes a paramount role in international law. Indeed, the ordinary meaning standard is explicitly mandated in Article 31 of the Vienna Convention of the Law of Treaties (VCLT), which requires that a treaty be “interpreted in good faith in accordance with the *ordinary meaning* to be given to the terms of the treaty in their context and in the light of its object and purpose.”² However, despite the elevated status of Articles 31 and 32 as customary international law,³ little attention has been devoted to assessing the coherence of the VCLT’s interpretive directive or, more generally, analyzing the linguistic difficulties raised by the interpretation of treaties under an ordinary meaning standard.

A coherent ordinary meaning doctrine is important because the interpretation of treaties frequently raises questions about basic issues of meaning. For instance, who is an “alcoholic”? Witold Litwa was detained by police in Kraków, Poland after causing a public disturbance while intoxicated.⁴ The European Convention on Human Rights provides that “[n]o one shall be deprived of his liberty” except in certain exceptional circumstances, which include “the lawful detention of . . . alcoholics.”⁵ While inebriated at the time, there was no allegation that Litwa habitually abused alcohol. Can he nevertheless be deemed an “alcoholic,” thereby justifying his detention consistent with the European Convention? Alternatively, is a lesbian couple protected by a provision in the International Covenant on Civil and Political Rights that guarantees the “right of men and women of marriageable age to marry”?⁶ Furthermore, is an arbitral award the arbitrator happened to sign in Paris but that arose out of an arbitration seated in London, an award “made” in Paris or London within the meaning of the Convention on the Recognition and Enforcement of Arbitral Awards?⁷

1. See BRIAN G. SLOCUM, *ORDINARY MEANING: A THEORY OF THE MOST FUNDAMENTAL PRINCIPLE OF LEGAL INTERPRETATION* 3 (2015).

2. See Vienna Convention on the Law of Treaties art. 31 & 32, *opened for signature* May 23, 1969, 1155 U.N.T.S. 331 (entered into force Jan. 27, 1980) [hereinafter VCLT] (emphasis added).

3. See Kenneth J. Vandeveld, *Treaty Interpretation from A Negotiator's Perspective*, 21 VAND. J. TRANSNAT'L L. 281, 290 (1988) (“Articles 31 and 32 of the Vienna Convention . . . codify the current international law of treaty interpretation.”).

4. Witold Litwa v. Poland, App. No. 26629/95, 33 Eur. H.R. Rep. 53 (2000). See *infra* Part IV.A.

5. [European] Convention for the Protection of Human Rights and Fundamental Freedoms, Nov. 4, 1950, art. 5, 213 U.N.T.S. 221. (entered into force Sept. 3, 1953), as amended by Protocols Nos. 3, 5, 8, and 11 (entered into force Sept. 21, 1970, Dec. 20, 1971, Jan. 1, 1990, and Nov. 1, 1998, respectively) [hereinafter European Convention].

6. International Covenant on Civil and Political Rights, *opened for signature* Dec. 19, 1966, 999 U.N.T.S. 171 art. 23 (entered into force Mar. 23 1976), available at <https://www.ohchr.org/en/professionalinterest/pages/ccpr.aspx> [hereinafter ICCPR].

7. Hiscox v. Outhwaite, [1992] 1 App. Cas. 562, 568 (defining a Convention award as “an award made in pursuance of an arbitration agreement in the territory of the State, other than the United

Judges reflexively assert that questions like those above are to be resolved under the ordinary meaning standard. The standard is widely cited in part because the idea of ordinary meaning is consistent with fundamental principles of legal interpretation, such as notice, predictability, and the notion that the public should be able to read and understand legal texts.⁸ The ordinary meaning doctrine thus reflects the presumption that legal texts should be understood by different people, including the general public, in the same way, and the language used in legal texts should therefore be viewed as corresponding with the language used in non-legal communications.⁹ Despite its centrality to legal interpretation, however, the ordinary meaning concept has not been developed and systematized by the judiciary.¹⁰ Scholars have observed that courts applying domestic laws do not have a coherent and consistently-applied theory of what makes some meaning the ordinary one, as opposed to an inappropriately broad or narrow or technical meaning, or even an unordinary meaning that nevertheless may reflect the purpose of the parties.¹¹

In important ways, the ordinary meaning standard in international law is even more undertheorized, considering the unique issues raised by international contexts and how the standard is mandated via a special interpretive directive.¹² The conventional view is that the VCLT provides for a largely unproblematic ordinary meaning standard. Article 31 is viewed as a “success . . . due to the relative lucidity of its terms as well as the consensus to which it gives rise,” which is due to the “obviousness of its provisions.”¹³ It seems obvious, in the words of the International Court of Justice (ICJ), that the “first duty” of a tribunal interpreting treaty terms “is to endeavour to give effect to them in their natural and ordinary meaning in the context in which they occur. If the relevant words in their natural and ordinary meaning make sense in their context, that is an end of the matter.”¹⁴ This language suggests that treaty terms have an ascertainable, determinate content and that a tribunal knows precisely where to locate it. Yet, these assumptions about ordinary meaning are frequently incorrect. For instance, often any ordinary meaning is too general to resolve the specific interpretive dispute, forcing the reviewing court to decide the case on other grounds.¹⁵

Kingdom, which is a party to the New York Convention”).

8. See Herman Cappelan, *Semantics and Pragmatics: Some Central Issues*, in *CONTEXT SENSITIVITY AND SEMANTIC MINIMALISM: NEW ESSAYS ON SEMANTICS AND PRAGMATICS* 3, 17 (Gerhard Preyer & Georg Peter eds., 2007) (explaining that “[w]hen we articulate rules, directives, laws and other action-guiding instructions, we assume that people, variously situated, can grasp that content in the same way.”).

9. See DAVID MELLINKOFF, *LANGUAGE OF THE LAW* 34 (1963).

10. See Thomas R. Lee & Stephen C. Mouritsen, *Judging Ordinary Meaning*, 127 *YALE L.J.* 788, 796–805 (2018) (describing how the judiciary expresses inconsistent and undertheorized notions of ordinary meaning).

11. See LAWRENCE M. SOLAN, *THE LANGUAGE OF JUDGES* 62 (1993) (arguing that “judges do not make good linguists because they are using linguistic principles to accomplish an agenda distinct from the principles about which they write.”).

12. See *infra* Part II.A.

13. Jean-Marc Sorel & Valérie Boré Eveno, *Article 31*, in *THE VIENNA CONVENTION ON THE LAW OF TREATIES: A COMMENTARY* 3 (Olivier Corten and Pierre Klein eds., 2011).

14. Competence of the General Assembly for the Admission of a State to the United Nations, Advisory Opinion, 1950 *I.C.J.* 4, 8 (Mar. 3).

15. Often the reviewing court relies on other grounds without explicitly acknowledging that the

Furthermore, the very concept of ordinary meaning depends on the existence of general conventions of meaning specific to a community of language users, which presents particular difficulties in the international context where there often exist multiple language communities with potentially different conventions of meaning.¹⁶ In fact, the VCLT's ordinary meaning standard is problematic in ways that suggest that it does not serve as the objective of interpretation in cases involving treaties.¹⁷

This Article offers the first sustained interdisciplinary critique of international law's ordinary meaning standard.¹⁸ Our main thesis is that while the VCLT mandates "ordinary meaning," it ultimately provides an incoherent interpretive directive that does not offer adequate guidance, and thus fails to channel and constrain interpretive discretion. In demonstrating this claim, we describe the difficulties raised by applying an ordinary meaning standard in international law, such as the tension between ordinary meaning and context and purpose, and the problems of indeterminate ordinary meaning and multiple language communities. We conclude that the "ordinary meaning" standard mandated in Article 31 paradoxically leads courts and tribunals instead to determine what we call the "communicative meaning" of treaties, defined as *the meaning an appropriate hearer would most reasonably take a speaker to be trying to convey in employing a given verbal vehicle in the given communicative context*.¹⁹

Introducing the term "communicative meaning" to the scholarly discussion of treaty interpretation might be controversial.²⁰ Undoubtedly, others would organize or define the relevant interpretive standards differently, and "communicative meaning" is not a term currently used by courts.²¹ Furthermore, some might contend that communicative meaning, as we define it, is in fact what the VCLT mandates when it specifies that courts should determine "ordinary meaning" in "context" with the proper "object and purpose" in mind. Even so,

interpretive dispute cannot be resolved on the basis of ordinary meaning.

16. See Stefan Th. Gries & Brian G. Slocum, *Ordinary Meaning and Corpus Linguistics*, 2017 BYU L. REV. 1417, 1429 (explaining how most interpretive tools are based on general conventions of meaning).

17. See *infra* Part II.C.

18. Of course, other scholars have discussed ordinary meaning in the context of the Vienna Convention, and as far as the authors are aware, there are just two books that address linguistic and other questions concerning the interpretation of treaties. See ULF LINDERFALK, *ON THE INTERPRETATION OF TREATIES: THE MODERN INTENTIONAL LAW AS EXPRESSED IN THE 1969 VIENNA CONVENTION ON THE LAW OF TREATIES* (2007); JULIAN WYATT, *INTERTEMPORAL LINGUISTICS IN INTERNATIONAL LAW* (2019).

19. See *infra* notes 118–20 and accompanying text. Going forward, rather than the cumbersome reference to both courts and tribunals, we refer simply to courts as a shorthand for any judicial, arbitral or other quasi-judicial body charged with interpreting treaties; the same goes for our reference to judges as a shorthand for judges, arbitrators and other decision-makers interpreting treaties.

20. Unlike "ordinary meaning," "communicative meaning" is not a term currently used by courts.

21. One could, for instance, make many more distinctions amongst the different varieties of meaning. See Richard H. Fallon, Jr., *The Meaning of Legal "Meaning" and Its Implications for Theories of Legal Interpretation*, 82 U. CHI. L. REV. 1235 (2015). While doing so may be useful for some purposes, the objective of this Article is to illustrate the interpretive discretion permitted by the VCLT's interpretive standard, and distinguishing between "ordinary meaning" and "communicative meaning" is sufficient to accomplish that purpose.

while viewing the VCLT as mandating a “communicative meaning” standard renders the directive more coherent, it still does not provide adequate guidance about various crucial interpretive issues, such as how “context” and “purpose” can be used by courts. To explicate this claim, it is necessary to identify the characteristics and limitations of any ordinary meaning standard, as well as the varied interpretive goals of courts and the VCLT, which often differ from or exceed ordinary meaning. Explanatory concepts such as “communicative meaning” are thus needed to depict in a nuanced way the nature of the VCLT’s interpretive directive and its limitations. Our goal therefore is to demonstrate that the VCLT falls short of what a coherent interpretive directive would require, rather than merely arguing that “ordinary meaning” should be read as “communicative meaning” in the VCLT.

In order to lay the groundwork for our arguments, Part II of this Article describes the background of the VCLT and the compromises that resulted in its interpretive directive. Most significantly perhaps, the International Law Commission purported to adopt a “crucible” approach that would throw into the interpretive mix not just the ordinary meaning standard but also “good faith” and the treaty’s “object and purpose” and “context,” which explicitly includes various other sources of meaning outside of the treaty’s text.²² The result is a broad interpretive directive that contains concepts that are in tension and leaves interpretive choices within the discretion of judges. For instance, the VCLT requires the consideration of some types of context but does not meaningfully circumscribe contextual considerations or indicate for what purposes context may be considered.²³ Similarly, Article 31’s reference to “purpose,” which is not defined, permits courts to engage in the sort of speculative, unregulated inferences about purpose that the ordinary meaning doctrine, as well as the VCLT, is designed to avoid.²⁴ Furthermore, the interpretive directive does not offer adequate guidance about how to resolve conflicts between different sources of meaning, such as between competing interpretive canons or the conventional meaning of a term and the perceived purpose of the treaty.

By failing to address the relationship between “ordinary meaning” and key terms like “purpose” and “context,” the VCLT overlooks the fundamental tension that exists between these concepts. The “ordinary” meaning of a provision must, by its very nature, consist of elements that cut across contexts but, at the same time, cannot be determined acontextually. Some contextual considerations though are relevant to the “communicative meaning” of a text rather than its “ordinary meaning.” Certainly, the communicative meaning of a particular text might also happen to be its ordinary meaning, but the two concepts are distinct and can diverge, even though scholars tend to conflate the two.²⁵

22. See *infra* notes 74–75 and accompanying text.

23. See *infra* notes 135–36 and accompanying text (arguing that context-free interpretation is an impossibility).

24. See *infra* Part II.A.

25. See, e.g., Lee & Mouritsen, *supra* note 10, at 793 (describing the “search for the ‘ordinary communicative content’ of the words of the law” and the “‘communicative content’ or ‘ordinary meaning’ of statutory text”).

When communicative meaning is sought, contextual evidence can be used in a variety of ways, allowing for inferences about both applicable conventions of language and the intent of the parties and purpose of the treaty.²⁶ These inferences may be unrelated to or even in tension with applicable conventions of language. In contrast, when ordinary meaning is sought, a narrower range of contextual inferences is relevant.²⁷ Importantly, the contextual evidence must relate to conventions of language, rather than authorial intent. By failing to provide adequate guidance about the permissible sources and uses of context, Article 31 glosses over these important distinctions.

To illustrate the problems raised by using the ordinary meaning concept in international law, Part III presents a derivation of the classic no-vehicles-in-the-park hypothetical by H.L.A. Hart. In turn, Part IV identifies, through a discussion of various cases, several basic issues involving the application of the ordinary meaning standard in the international context. The issues go beyond the scope of what the VCLT attempts to address, such as the problems of multiple communities of language users and the need for courts to privilege one community's view of meaning over another, as well as the temporal issues that inevitably arise when language changes meaning over time. The overriding theme of this Part is that the ordinary meaning standard raises the question of *whose* ordinary meaning should control. This issue is especially acute when part of the meaning must be implied. Whether an implied meaning can be defended as the ordinary meaning of the language is a contestable question that depends on assumptions about the abilities of the parties bound by treaties to understand subtle variations in meanings that transcend the explicit language, even when those parties come from different cultures and may speak the language of the treaty as a second language.

Finally, Part V explains how critically engaging the VCLT's interpretive directive can reveal insights about legal interpretation more generally. While an interpretive directive should be coherent, no interpretive directive can fairly be expected to provide a comprehensive guide to interpretation that addresses every aspect of methodology, such as the correct language community or temporal perspective to be used in any given situation. Yet, to be useful, an interpretive directive must guide and constrain judicial interpretive discretion through the articulation of an objective of interpretation (such as "ordinary meaning" or "communicative meaning") and some notion of the allowable sources of meaning and the inferences that can be made from these sources. A coherent interpretive process will include sources of meaning that when applied accurately determine the standard identified by the objective of interpretation and exclude sources that do not do so. To illustrate this point, we construct a table matching possible objectives of interpretation with theoretically consistent sources of meaning.²⁸ As with the VCLT, when there is a mismatch between the objective of interpretation ("ordinary meaning") and the allowable sources of

26. See *infra* Part II.C.

27. See *infra* Part V.

28. See *infra* notes 357–59 and accompanying text.

meaning (which permit unregulated inferences about purpose), the interpretive directive provides guidance that is incoherent. Furthermore, even if the VCLT is read as mandating communicative meaning, its failure to meaningfully restrict the allowable sources of meaning and how those sources may be used leaves judicial interpretive discretion unconstrained.

The interpretation of legal texts is inherently discretionary, and courts and tribunals can manipulate even ideologically neutral interpretive tools, like ordinary meaning, to achieve favored results.²⁹ Nevertheless, the ordinary meaning standard in the VCLT is a fundamental principle of international law that is widely viewed as making important contributions to the way courts and tribunals interpret treaties. We urge here the reconsideration of this conventional wisdom.

II. THE VIENNA CONVENTION AND ORDINARY MEANING

A. A Brief History of Ordinary Meaning in the Vienna Convention

Articles 31 and 32 of the VCLT effectively codify the international law of treaty interpretation,³⁰ and are widely regarded as reflecting customary international law.³¹ The VCLT has been widely signed and ratified, and countries that have failed to ratify it, such as the United States, generally view Articles 31 and 32 of the Convention as binding by way of elevation to a customary norm of international law.³² Indeed, these interpretive rules are so well accepted that they have not only been applied to treaties between states in accordance with their defined scope under the VCLT,³³ they have been relied upon through analogy in the interpretation of international contracts,³⁴ and of unilateral acts such as

29. See SOLAN, *supra* note 11 (describing the discretion inherent in interpretation and how neutral linguistic principles can be manipulated by courts).

30. See Vandeveld, *supra* note 3.

31. See *Arbitration Regarding the Iron Rhine ("Ijzeren Rijn") Railway* (Belg./Neth.), Award of 24 May 2005, XXVII R.I.A.A. 35, 62 ¶ 45 (noting that "[i]t is now well established that the provisions on interpretation of treaties contained in Articles 31 and 32 of the Convention reflect pre-existing customary international law There is no case after the adoption of the Vienna Convention in 1969 in which the International Court of Justice or any other leading tribunal has failed to [apply customary rules of treaty interpretation as reflected in Articles 31 and 32]"; *Avena and Other Mexican Nationals (Mex. v. U.S.)*, 2004 I.C.J. Reports 37-38 ¶ 83 (the ICJ noting that the treaty text at issue "requires interpretation according to the customary rules of interpretation reflected in Articles 31 and 32 of the Vienna Convention on the Law of Treaties"); *United States—Standards for Reformulated and Conventional Gasoline (US—Gasoline)*, adopted 20 May 1996, WT/DS2/AB/R, at 17 (WTO Appellate Body stating that Article 31 "has attained the status of a rule of customary or general international law").

32. The U.S. has explicitly relied on Articles 31 and 32 in arbitral and other international proceedings. See, e.g., *United States—Restrictions on Imports of Cotton and Man-Made Fibre Underwear* (8 Nov. 1996) WT/DS24/R, at 185 ¶ 5 ("The United States argued that, in accordance with customary rules of international law concerning treaty interpretation, as reflected in the Vienna Convention on the Law of Treaties, the United States had looked to the plain meaning of the terms in their context and object and purpose."). See also RICHARD GARDINER, *TREATY INTERPRETATION* 18 (2d ed. 2015) (noting that the "view that the [Vienna Convention] rules constitute customary international law . . . is evidenced in the practice of states which are not parties to the Vienna Convention").

33. See VCLT, *supra* note 2, art. 1 ("The present Convention applies to treaties between States.").

34. See, e.g., *RSM Prod. Co. v. Grenada*, ICSID Case No. ARB/05/14, Award, ¶ 383 (Mar. 13, 2009) (ICSID tribunal applying Vienna Convention principles by analogy to the interpretation of text in a contract between the foreign investor and the host state).

declarations by states accepting the jurisdiction of the ICJ and resolutions of international organizations.³⁵ The Appeals Chamber of the Special Tribunal for Lebanon went so far as to conclude that the interpretive rules of the VCLT are “applicable to any internationally binding instrument, whatever its normative source ... [] because such rules translate into the international realm general principles of judicial interpretation that are at the basis of any serious attempt to interpret and apply legal norms consistently.”³⁶ Regardless of their precise contours, as formalized, Articles 31 and 32 are the most influential textual interpretive principles in international law.

What ultimately become Articles 31 and 32 was first introduced in the Third Report of Humphrey Waldock, the Special Rapporteur of the International Law Commission (ILC or Commission) on the Law of Treaties (“Waldock Third Report”), as draft Articles 70-73.³⁷ Even though the Waldock Third Report consecrates the “natural and ordinary meaning of the terms [as] the very essence of the textual approach” at the core of the interpretive exercise, it does not define ordinary meaning.³⁸ Indeed, the ILC never does define it, whether in its subsequent consideration of these draft articles, the official ILC commentary or the articles themselves. Yet, it is plain from these sources that the interpretive exercise must critically begin with the determination of the ordinary meaning of the text. For example, the official ILC commentary to what became article 31 reiterates the Waldock Third Report in instructing that “the starting point of interpretation is the elucidation of the meaning of the text, not an investigation *ab initio* into the intentions of the parties.”³⁹

To arrive at this undefined ordinary meaning, Articles 31 and 32 introduce auxiliary interpretive guidelines. Specifically, Article 31(1) supplies additional guiding principles by providing that the treaty be interpreted in “good faith” in accordance with the ordinary meaning to be given to its terms in their “context” and in light of its “object and purpose.” In turn, article 31(2) specifies the sources of meaning that make up the “context” referenced in Article 31(1), and Article

35. See, e.g., *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)*, *Jurisdiction and Admissibility*, Judgment, 1984 I.C.J. Reports 420 ¶ 63 (noting that a state’s unilateral declaration accepting the ICJ’s jurisdiction should be interpreted in good faith as with treaties and “by analogy according to the law of treaties.”); *Fisheries Jurisdiction (Spain v. Can.)*, 1998 I.C.J. Reports 439, ¶¶ 25, 30, 46 (noting that the provisions of the Vienna Convention apply (only) analogously to the interpretation of optional clause declarations, and to the extent compatible with their sui generis character as unilateral acts of state sovereignty). See also STEFAN TALMON, *The Security Council As World Legislature*, 99 AM. J. INT’L L. 175, 190 (2005) (noting that while “Articles 31 to 33 of the Vienna Convention are not directly applicable here, [] the methods they set forth for the interpretation of treaties may, with certain qualifications, be applied by analogy to resolutions of the Security Council).

36. *Prosecutor v. Ayyash*, Case No. STL-11-01/I, *Interlocutory Decision on the Applicable Law: Terrorism, Conspiracy, Homicide, Perpetration, Cumulative Charging*, ¶ 26 (Spec. Trib. for Leb. Feb. 16, 2011) (citations omitted).

37. Humphrey Waldock, Special Rapporteur, Third Report on the Law of Treaties, U.N. Doc. A/CN.4/167 and Add 1-3 (1964), *reprinted in* [1964] 2 Y.B. Int’l L. Comm’n 5, 52 [hereinafter Waldock Report III].

38. *Id.* at 56 ¶ 14.

39. International Law Commission, Draft Articles on the Laws of Treaties with Commentaries 187, 220 (art. 27 cmt. 11), in International Law Commission [ILC], Report of the International Law Commission on the Work of its Eighteenth Session, UN Doc. A/CN.4/191 (1966) [hereinafter ILC Commentary].

31(3) identifies additional sources of meaning extrinsic to the treaty that may be consulted alongside the “context” for determining the ordinary meaning. Article 31(4) provides that a treaty term be given its “special meaning” instead when it is established that parties intended the special meaning. Finally, Article 32 allows for recourse to supplemental sources of meaning, including “the preparatory work of the treaty and the circumstances of its conclusion,” to either “confirm” the interpretation under Article 31 or determine the relevant meaning when that ordinary meaning is ambiguous or obscure, or leads to a manifestly absurd or unreasonable result.

Article 31(1) thus looks to the concept of “good faith” as well as the treaty text’s “object and purpose” and “context” to guide the determination of relevant ordinary meaning. The reference to “good faith—flows directly from the rule *pacta sunt servanda*,”⁴⁰ which is “[t]he rule that agreements and stipulations, esp[ecially] those contained in treaties, must be observed.”⁴¹ Both the “good faith” concept and the treaty’s “object and purpose”—the latter being discernible from a treaty’s preamble⁴²—serve to give effect to “the maxim *ut res magis valeat quam pereat*,”⁴³ which may be translated as “to give effect to the matter rather than having it fail.”⁴⁴ The idea here is to differentiate between competing interpretations with different consequences:

When a treaty is open to two interpretations one of which does and the other does not enable the treaty to have appropriate effects, good faith and the objects and purposes of the treaty demand that the former interpretation should be adopted.⁴⁵

Article 31(1) also anchors the ordinary meaning interpretation in the treaty’s “context,” which is “not merely the article or section of the treaty in which the term occurs, but the treaty as a whole”⁴⁶ Article 31(2) goes on to “define what is comprised in the ‘context’ for the purposes of the interpretation of the treaty,”⁴⁷ which includes not just the treaty text, but any agreement or instrument related to the treaty that was made by all parties, or by one or more parties but accepted by the other parties, in connection with the conclusion of the treaty.⁴⁸ The Commission had deliberately located these sources of meaning in Article 31(2) rather than in Article 32 to make clear that “these categories of documents should not be treated as mere evidence to which recourse may be had for the purpose of resolving an ambiguity or obscurity, but as part of the context for the purpose of arriving at the ordinary meaning of the treaty.”⁴⁹

40. *Id.* at 221 cmt. 12.

41. *Pacta sunt servanda*, BLACK’S LAW DICTIONARY (10th ed. 2014).

42. The ILC appears to assume that the principal source for determining a treaty’s object and purpose is its preamble. See ILC Commentary, *supra* note 39, at 221 cmt. 12 (“Again the Court has more than once had recourse to the statement of the object and purpose of the treaty in the preamble in order to interpret a particular provision.”) (citations omitted); GARDINER, *supra* note 32, at 215 n. 175.

43. ILC Commentary, *supra* note 39, at 219 cmt. 6.

44. BLACK’S LAW DICTIONARY 1762–63 (8th ed. 2004).

45. ILC Commentary, *supra* note 39, at 219 cmt. 6.

46. *Id.* at 221 cmt. 11.

47. *Id.* at 221 cmt. 13.

48. See VCLT, *supra* note 2.

49. ILC Commentary, *supra* note 39, at 219 cmt. 6.

Article 31(3) further expands the sources of meaning extrinsic to the treaty that may be initially consulted alongside (but distinct from) the “context” for determining the ordinary meaning of the relevant treaty text. Specifically, Article 31(3)(a) captures any subsequent agreement between the parties regarding the treaty’s interpretation or application on the ground that it “represents an authentic interpretation by the parties which must be read into the treaty for purposes of its interpretation.”⁵⁰ Article 31(3)(b) drafts any subsequent practice in the treaty’s application that establishes the parties’ agreement regarding its interpretation because “it constitutes objective evidence of the understanding of the parties as to the meaning of the treaty.”⁵¹ Finally, Article 31(3)(c) adds any relevant rules of interpretation applicable in the relations between the parties.⁵²

Consideration of the allowable sources of meaning may indicate, as sanctioned by Article 31(4), that the parties intended that a treaty term be given a “special meaning.” Certain ILC members doubted the need for a rule on the “special meaning” of a treaty term since the “technical or special use of the term normally appears from the context and ... becomes, as it were, the ordinary meaning in the particular context.”⁵³ However, the ILC ultimately favored the view of other members who “considered that there was a certain utility in laying down a specific rule on the point, if only to emphasize that the burden of proof lies on the party invoking the special meaning of the term.”⁵⁴

Despite the VCLT’s focus on ordinary meaning, certain ILC members preferred to give a “larger” and “more automatic role to preparatory work and other supplementary means in the process of interpretation,” which could mean “including it in [article 31].”⁵⁵ However, because the “elements of interpretation in article [31] all relate to the agreement between the parties *at the time when or after it received authentic expression in the text*” as opposed to the preparatory nature of *travaux*, which is included in Article 32 as a supplementary means of interpretation, “the Commission was of the opinion that the distinction made in articles [31] and [32] between authentic and supplementary means of interpretation is both justified and desirable,” and also consistent with ICJ jurisprudence.⁵⁶ Accordingly, in formulating Article 31 as the “General Rule of Interpretation,” the Commission intended to “mak[e] the ordinary meaning of the terms, the context of the treaty, its object and purpose, and the general rules of international law, together with authentic interpretations by the parties, the primary criteria for interpreting a treaty.” For that reason, the Commission specifically designated recourse to *travaux* as a “supplementary” means of

50. *Id.* at 221 cmt. 14.

51. *Id.* at 221 cmt. 15 (citations omitted).

52. *See* VCLT, *supra* note 2.

53. ILC Commentary, *supra* note 39, at 222 cmt. 17.

54. *Id.*

55. ILC Commentary, *supra* note 39, at 220 cmt. 10.

56. *Id.* (emphasis in original). *See also id.* at 223 cmt. 18 (quoting the ICJ Opinion in *Admission of a State to the United States* that “[t]he Court considers that the text is sufficiently clear; consequently it does not feel that it should deviate from the consistent practice of the Permanent Court of International Justice, according to which there is no occasion to resort to preparatory work if the text of a convention is sufficiently clear in itself.”).

interpretation in order to circumscribe what it recognized as the “considerable discretion [that] has to be exercised in determining their value as an element of interpretation” since “records of treaty negotiations are in many cases incomplete or misleading.”⁵⁷

In selecting and ordering the particular interpretive guidelines in Articles 31 and 32, the Commission had deliberately sought “to isolate and to codify the comparatively few rules which appear to constitute the strictly legal basis of the interpretation of treaties.”⁵⁸ The Commission was concerned that “doctrinal differences concerning the methods of interpretation have tended to weaken the significance of the text as the expression of the will of the parties” and so wanted to stake out “a clear position in regard to the role of the text in treaty interpretation.”⁵⁹ Curbing judicial discretion through the elevation of the text was critical because “it is not the function of interpretation to revise treaties or to read into them what they do not, expressly or by implication, contain.”⁶⁰ In seeking to emphasize the significance of the text, the Commission nevertheless did not privilege one source of meaning over another. Instead, the idea was that “[a]ll the various elements, as they were present in any given case, would be thrown into the crucible, and their interaction would give the legally relevant interpretation.”⁶¹ The “crucible” approach thus assumes that the elements are complementary or at least that their interplay would lead to a correct interpretation. Indeed, the Commission indicated that these “elements are all of an obligatory character and by their very nature could not be considered to be norms of interpretation in any way inferior to [each other].”⁶²

B. The Vienna Convention’s “Crucible” Approach

Article 31 of the VCLT thus sets forth a “General Rule of Interpretation” that mandates a focus on the “ordinary meaning” of the “terms of the treaty.” In fact, the “Commission was unanimous . . . that the starting point of interpretation is the meaning of the text.”⁶³ Recall that the provision has been deemed a “success . . . due to the relative lucidity of its terms as well as the consensus to which it gives rise,” which is due to the “obviousness of its provisions.”⁶⁴ In a general sense, the correctness of Article 31 is obvious because its terms are

57. ILC Commentary, *supra* note 39, at 220 cmt. 10.

58. Waldock Report III, *supra* note 37, at 54 cmt. 8. *See also* ILC Commentary, *supra* note 39, at 218–19 cmt. 5.

59. Waldock Report III, *supra* note 37, at 54 cmt. 8.

60. ILC Commentary, *supra* note 39, at 220–21 cmt. 11 (citation omitted). In so elevating the text, the Commission appears to have equated ordinary meaning with the objective reading of the text, in contradiction to the subjective meaning intended by the parties.

61. *Id.*

62. *Id.* at 220 cmt. 9.

63. ILC Commentary, *supra* note 39, at 220 cmt. 9. *See also* Julian Davis Mortenson, *The Travaux of Travaux: Is the Vienna Convention Hostile to Drafting History?*, 107 AM. J. INT’L L. 780, 785 (2013) (“The historical understanding of Articles 31 and 32 cannot be understood without grasping the basic methodological assumption that guided their drafters. It is this: the presumptive object of interpretation is the text of the treaty being interpreted.”).

64. *See supra* note 13.

familiar ones used to describe basic principles of legal interpretation.⁶⁵ In fact, the principle that words should be given their ordinary meanings is “perhaps the most widely cited axiom of legal interpretation.”⁶⁶

Furthermore, Article 31 is obvious because it is difficult for many to imagine a plausible alternative to the principle that undefined terms should be given their ordinary meanings.⁶⁷ The ordinary meaning requirement follows naturally from the characteristic feature of legal texts, which is the employment of natural language to accomplish their purposes.⁶⁸ The basic premise of the ordinary meaning doctrine is that textual language should be interpreted in light of the accepted and typical standards of communication that apply outside of the law.⁶⁹ If one assumes that successful communication is the goal in most cases, then legal texts such as treaties should be understood by different people, including the general public, in the same way.⁷⁰ The “ordinary meaning” doctrine, fundamental to legal interpretation, thus reflects the presumption that legal and non-legal language correspond.

Despite its centrality, the literature on the VCLT has not engaged meaningfully with the definition and concept of ordinary meaning itself.⁷¹ To the extent that commentators have attempted to define or describe ordinary meaning, they have referred to it as the “obvious,”⁷² “plain” or “literal” meaning,⁷³ or gone in circles relying alternately on the synonyms or antonyms of the term “ordinary,” restating it, for example, as the “normal, regular or usual meaning,”⁷⁴ or in opposition to the “unusual, uncommon or distinctive” meaning.⁷⁵ Commentators have also appeared to conflate ordinary meaning with

65. See *infra* Part II.B.1.

66. ANTONIN SCALIA & BRYAN A. GARNER, *READING LAW: THE INTERPRETATION OF LEGAL TEXTS* 6 (2012) (referring to the ordinary meaning doctrine as “the most fundamental semantic rule of interpretation.”).

67. See SLOCUM, *supra* note 1, at 9–10.

68. See generally HEIKKI E. S. MATTILA, *COMPARATIVE LEGAL LINGUISTICS* (Christopher Goddard trans., 2d ed. 2013) (examining the functions and characteristics of legal language and the terminology of law).

69. See SLOCUM, *supra* note 1, at 3.

70. See Cappelán, *supra* note 8, at 17.

71. Cf. CHANG-FA LO, *TREATY INTERPRETATION UNDER THE VIENNA CONVENTION ON THE LAW OF TREATIES* 151–76 (2017) (dedicating an entire chapter in the book to “Methods of Searching for the Ordinary Meaning and the Possible Codification” although with minimal interdisciplinary reliance on linguistic theory); GARDINER, *supra* note 32, at 181–96 (discussing the ordinary meaning principle, although without reference to linguistic theory).

72. See, e.g., Jean-Marc Sorel & Valérie Boré Eveno, *Article 31—Convention of 1969*, in *COMMENTARY ON THE 1969 VIENNA CONVENTIONS ON THE LAW OF TREATIES* 804, 809 (Olivier Corten & Pierre Klein eds., 2011) (“The objective is to find an interpretation that is simultaneously obvious (the ordinary meaning of terms)”).

73. See, e.g., GARDINER, *supra* note 32, at 184 (referring to “the plain, normal or ordinary meaning”). See also CHANG-FA LO, *supra* note 93, at 157 (noting that “plain meaning” or “literal meaning” are “used by many people interchangeably” to refer to “ordinary meaning”).

74. Mark E. Villiger, *The Rules on Interpretation: Misgivings, Misunderstandings, Miscarriage? The ‘Crucible’ Intended by the International Law Commission*, in *THE LAW OF TREATIES BEYOND THE VIENNA CONVENTION* 105, 109 (Enzo Cannizzaro ed., 2011). See also GARDINER, *supra* note 32, at 183 (noting that “‘ordinary’ includes the meaning ‘regular, normal or customary’”); MARK E. VILLIGER, *COMMENTARY ON THE 1969 VIENNA CONVENTION ON THE LAW OF TREATIES* 426 (2009) (stating that ordinary meaning “is its current and normal (regular, usual) meaning”).

75. See CHANG-FA LO, *supra* note 93, at 154.

legal meaning, without grasping that the ordinary meaning of any text, including legal texts, is one shared by the general public (and not one appreciated only by a subgroup such as lawyers).⁷⁶ More often, commentators appear to have assumed that the meaning of “ordinary meaning” is self-evident.⁷⁷

1. The “Obvious” Elements of Interpretation

The obviousness of the ordinary meaning standard in Article 31 belies the difficulties of precisely defining its constituent features, which the VCLT does in a partial and unconvincing manner.⁷⁸ In fact, an examination of the standard reveals the problematic relationship between ordinary meaning and the other elements of Articles 31 and 32. The very nature of ordinary meaning is that it must be based on an “objective” view of meaning because its communicative content is not based on the author’s communicative intentions.⁷⁹ Introducing other elements into the interpretive mix risks confusing the issues and deviating from ordinary meaning. For instance, Article 31 references an additional “good faith” standard which may be in tension with the objectivity mandated by ordinary meaning.⁸⁰ Specifically, Article 31 indicates that a treaty “shall be interpreted in good faith in accordance with the ordinary meaning” of its terms, but it is unclear what “good faith” adds to the focus on “ordinary meaning.” Would it be bad faith, for instance, to interpret a treaty in a manner that is contrary to the probable intent of the parties, even if to do so would be consistent with the ordinary meaning of the terms?⁸¹ If not, the “good faith” language does not alter, or add to, the ordinary meaning standard. Conversely, if such an interpretation is regarded as the product of bad faith, it fundamentally undermines the centrality of ordinary meaning. If the likely intentions of the parties can trump ordinary meaning, the goal of interpretation would be the ascertainment of the meaning communicated (or attempted to be communicated) by the parties, rather than the ordinary meaning of the language.

Similarly, terms such as “context” and “purpose” are ineliminable aspects of textual interpretation but can also suggest the sanctioning of an interpretation

76. See, e.g., GARDINER, *supra* note 32, at 53 (opining that the interpretation under the New York Convention by English courts of the word “made” as meaning “signed” in line with English law and practice “was not unreasonable as a starting point [because to] most English lawyers, ‘made’ in connection with any legal instrument would have the clear meaning of ‘executed,’ ‘perfected’ or (as in the present context) ‘signed.’”) (emphasis added). Cf. CHANG-FA LO, *supra* note 93, at 154 (asserting treaties are different from domestic statutes in relation to the “intended regulated persons” and that “in the context of treaty interpretation, the decision of ordinariness should be based on the ordinary understanding of the people in the respective field.”). Yet this assertion would render much of ordinary meaning indistinguishable from special meaning as defined in Article 31(4).

77. See, e.g., Richard Gardiner, *The Vienna Convention Rules on Treaty Interpretation*, in THE OXFORD GUIDE TO TREATIES, Part V.19, 459 (Duncan B. Hollis ed., 2d ed. 2020) (discussing ordinary meaning as an interpretive principle without defining the concept itself).

78. See *supra* Part II.A.

79. See SLOCUM, *supra* note 1, at 4.

80. Alternatively, it may be an instruction to the interpreter to determine ordinary meaning in “good faith,” but it would be odd to direct a court to interpret a provision honestly.

81. Some might argue (incorrectly) that it is not possible to interpret a legal text in accordance with its ordinary meaning but contrary to the intent of the parties, but if this argument is accepted it underscores that good faith does not add to Article 31’s instruction.

that deviates from ordinary meaning. One of the purposes of Article 31 is to mandate an objective approach to interpretation, but in an important sense, legal interpretation must necessarily be based on an objective view of meaning.⁸² Because a legal text is a communication, it follows that the text has a meaning that can be determined on the basis of accepted and typical standards of communication.⁸³ Even so, determining the meaning of a text, especially a legal text, is different from the process of language comprehension that occurs in a typical oral conversation.⁸⁴ In both situations, interpretation is not telemental where a thought is transferred from the author's mind to the interpreter's mind.⁸⁵ Still, texts are dissimilar from oral utterances in various important ways, and these differences are crucial to how texts can be interpreted.⁸⁶ Difficulties in understanding in ordinary language use can frequently be resolved in a situation involving oral communication, but the interpretation of legal texts does not provide such possibilities.⁸⁷ Because autoglotic space (a distance between the writing and the author(s)) is an inherent characteristic of legal texts, courts must create interpretive tools, such as the ordinary meaning concept, that are based on generalized, and often fictional, assumptions about authorial intent.⁸⁸

A legal text must therefore be viewed as an utterance that is produced in a public context by a historically and culturally situated author.⁸⁹ With texts, especially legal ones, intention must be viewed not from the perspective of the author, but rather the interpreter or some other member of the audience such as a "reasonable person."⁹⁰ While the interpreter constructs a hypothesis regarding authorial intent to convey a meaning to an audience, the hypothesis is based on evidence external to the author. When the terms in a legal text are left undefined, the so-called semantic intentions of the author(s)—the intent to use a word or phrase and mean something by it rather than something else it may mean—must therefore be inferred or assumed by the interpreter.

82. See *supra* note 73 and accompanying text (describing the view that Article 31 is intended to mandate an objective approach to interpretation).

83. See Brian G. Slocum, *Ordinary Meaning and Empiricism*, 40 STAT. L. REV. 13, 15 (2018) (explaining that "legal texts should be interpreted according to standards of communication that give texts readily discernible meanings").

84. See generally BERNARD S. JACKSON, *MAKING SENSE IN THE LAW: LINGUISTIC, PSYCHOLOGICAL AND SEMIOTIC PERSPECTIVES* (1995).

85. See ROY HARRIS, *RETHINKING WRITING* 50 (2001).

86. See SLOCUM, *supra* note 1, at 44–49 (explaining how routine and important aspects of conversational interpretation are unavailable to the interpreter of a typical text).

87. See M. GALDIA, *LEGAL LINGUISTICS* 93 (2009) (indicating that "[l]aw does not provide us with such comfort.").

88. See JACKSON, *supra* note 106, at 86 (explaining that "autoglotic space" is the feature which makes possible deductive logic).

89. Thus, the meaning of a legal text must be based on the meaning communicated by the language, in light of the context of text, rather than a meaning based on some acontextual understanding or one based on the authors' subjective understandings or intent.

90. The "reasonable person" could be viewed as a hypothetical member of the body that produced the text, such as a "reasonable legislator" in the context of legislation. Viewing the "reasonable person" as the producer of the language rather than the intended reader may influence the evidence that is considered. The ordinary meaning doctrine though traditionally assumes that the relevant "reasonable person" is a member of the community, rather than the producer of the text, and we assume that the VCLT did not intend to alter this traditional perspective.

Under a model of communication where intention is viewed from the interpreter's perspective, rather than the author's, interpretation involves a series of inferences about what speakers are intending to convey.⁹¹ As a result, a multi-level process of inferential reasoning is an aspect of even universally-accepted interpretive principles like the ordinary meaning doctrine. The doctrine acts as an umbrella of sorts that encompasses various determinants of ordinary meaning. Dictionaries are an obvious, and commonly used, example.⁹² A dictionary definition is not useful because it reveals some particular legislative intent but, rather, because of the (often mistaken) belief that the definition provides the ordinary meaning of the relevant word and the correlative, generalized, second-order presumption that the legislature intended for the word to be given its ordinary meaning.⁹³

The inferential nature of interpretation, and the concomitant necessity of applying generalized principles of language usage in light of the particularized context of a text, mean that the communicative meaning of a text must be framed along the lines of *the meaning an appropriate hearer would most reasonably take a speaker to be trying to convey in employing a given verbal vehicle in the given communicative-context*.⁹⁴ By focusing on an objective hearer rather than the actual speaker, the definition frames the inquiry in terms of external determinants of meaning that represent valid principles of language usage rather than the internal intentions of the speaker.⁹⁵ As well, the definition accounts for how those general principles are applied within a specific context.⁹⁶

If the interpretation of legal texts must naturally account for generalized principles of language usage as well as the particularized context of the text, a directive that treaty language be interpreted in light of its "ordinary meaning" as well as its "context" and "purpose" provides no further illumination about interpretation. In fact, one cannot sensibly engage in the interpretation of legal

91. See Steven T. Piantadosi, Harry Tily, and Edward Gibson, *The Communicative Function of Ambiguity in Language*, 122 COGNITION 280, 280 (2012).

92. To be sure, judicial reliance on dictionaries has been criticized by commentators. See, e.g., Ellen P. Aprill, *The Law of the Word: Dictionary Shopping in the Supreme Court*, 30 ARIZ. ST. L.J. 275 (1998) (describing the unprincipled use of dictionaries by judges); GARDINER, *supra* note 32, at 186–89 (noting that "the multiplicity of meanings offered by dictionaries for most words serves to answer criticisms levelled against the Vienna rules for their alleged over-reliance on the 'ordinary meaning' ... [in that] it makes almost inevitable immediate recourse to context and other aids prescribed by the rules")

93. See *American Tobacco Co. v. Patterson*, 456 U.S. 63, 69 (1982) (explaining that the Court "assume[s] that the legislative purpose is expressed by the ordinary meaning of the words used.") (quotations and citation omitted).

94. This definition of communicative meaning is similar to the description of legal interpretation given by Oliver Wendell Holmes more than a century ago when he explained that the interpreter's role is not to ask what the author meant to convey but instead determine "what those words would mean in the mouth of a normal speaker of English, using them in the circumstances in which they were used" Oliver Wendell Holmes, *The Theory of Legal Interpretation*, 12 HARV. L. REV. 417–18 (1899).

95. Of course, inferences about a speaker's purpose can still be made and are likely inevitable. See STEPHEN C. LEVINSON, PRESUMPTIVE MEANINGS: THE THEORY OF GENERALIZED CONVERSATIONAL IMPLICATURE 139 (2000).

96. All courts acknowledge that context is important to interpretation. See, e.g., *King v. Burwell*, 135 S. Ct. 2480, 2489 (2015) ("So when deciding whether the language is plain, we must read the words 'in their context and with a view to their place in the overall statutory scheme.' Our duty, after all, is 'to construe statutes, not isolated provisions.'" (citations omitted)).

texts without considering both generalized principles of language usage and context.⁹⁷ The necessity of judicial reliance on generalized principles of language usage should be obvious. Communication could not proceed without the interpreter taking account of the semantic meanings of words. Legal texts do not define every word used, and drafters generally do not otherwise leave specific evidence regarding the desired definitions of the words.

The ineluctable contribution of context to meaning is similarly a feature of interpretation. Utterances occur within a certain context, and acontextual meaning is an unobservable, theoretical construct.⁹⁸ Interpreters are therefore inevitably influenced by their knowledge of the world. It is not possible to remove broader contextual considerations from the assignment of semantic meaning due, in part, to the reality that a null context free of contextual input only exists in theory and, in any case, does not produce sufficiently specific meanings.⁹⁹ Furthermore, with a legal text, the proper object of meaning does not involve the meaning of an individual word but, rather, sentences and larger units of meaning.¹⁰⁰ Thus, ultimately the relevant inquiry is not the ordinary meaning of words, such as “alcoholics” or “made,” which may encompass numerous and varied senses, but, rather, the ordinary meaning of the sentences in which the words appear.¹⁰¹

2. The Vienna Convention's Restriction of Context

By mandating that a treaty be interpreted “in accordance” with the “ordinary meaning” of its “terms” in light of their “context” and the “object and purpose” of the treaty, Article 31(1) therefore does nothing more than state the very basic, and ineliminable, elements of textual interpretation.¹⁰² As outlined

97. See Elin Fredsted, *On Semantic and Pragmatic Ambiguity*, 30 J. PRAGMATICS 527, 532 (1998) (explaining that language involves “a stable logical-semantic kernel of meaning” that is “overlaid by an unstable context specific pragmatic meaning”). Thus, a court must consider not only the conventional meanings of words, and correlatively sentences, but also the relevant context and overall design of the document. Cf. Dan Sperber & Deirdre Wilson, *Pragmatics Modularity and Mind-reading*, 17 MIND & LANGUAGE 3 (2002) (explaining that the meaning produced by simply decoding word meanings vastly underdetermines the speaker’s meaning).

98. See Ross Charnock, *Clear Ambiguity: The Interpretation of Plain Language in English Legal Judgments*, in LEGAL LANGUAGE AND THE SEARCH FOR CLARITY 65–103 (Sophie Cacciaguidi-Fahy & Anne Wagner eds., 2013) (describing the ineliminability of contextual considerations).

99. See generally JOHN SEARLE, *EXPRESSION AND MEANING* (1979) (arguing against the idea that complete meanings, such as would be required in legal cases, can be determined in a null context). See also Varol Akman, *Rethinking Context as a Social Construct*, 32 J. PRAGMATICS 743, 745 (2000) (explaining how “[c]ontext is . . . a crucial factor in communication”).

100. With philosophy of language and linguistics, the typical focus is on sentences as the relevant units of meaning. Often the focus on word meanings instead of sentence meaning stems from the judiciary’s overreliance on dictionaries, which offer acontextual word meanings. Instead, a distinction must be made between the meaning of words and the meaning of sentences. See JACKSON, *supra* note 84, at 43.

101. One alternative to a focus on sentence meaning is to assert that some larger object, such as the relations among sentences or the entire document, should be the unit of analysis. See SLOCUM, *supra* note 1, at 107. Obviously, the relations among sentences might reveal that the communicative meaning of a text differs from its ordinary meaning. Whether the proper unit of meaning is the sentence of something broader like the entire document, a focus on individual words in exclusion is misplaced.

102. It cannot even be claimed that Article 31 is a refutation of a textualist approach to interpretation, which also maintains that interpretation must be made in light of context and which

above, linguistic communication via a text involves an interpreter determining the meaning of the author's inscription on the basis of various interpretive tools, many of which are based on conventions of meaning or other principles resting on generalized assumptions about language usage. In essence, the interpreter must determine the meaning of the text on the basis of the words used and their composition, as well as the relevant context.¹⁰³ This is not to contend that there is consensus about specific issues regarding how legal interpretation should proceed. In fact, there are long-standing and ongoing debates about various aspects of legal interpretation.¹⁰⁴ These debates, properly framed, though typically concern *evidential* issues regarding which determinants of meaning (e.g., legislative history in statutory interpretation) should be considered by the interpreter or how conflicts among the different sources of meaning should be reconciled.¹⁰⁵ This latter conflict concerns whether legal interpreters should privilege information regarding the systematicities of language (such as conventional word meanings) or pragmatic information that involves the interpreter making inferences from contextual evidence.¹⁰⁶ These debates, which largely account for the differences in interpretive theories and outcomes, are not resolved by the VCLT.

Article 31 thus sets forth a largely unhelpful principle of interpretation in Paragraph 1; and the rest of the VCLT does not offer any meaningful constraints on judicial discretion, although the provisions do purport to offer guidance about sources of contextual evidence. Paragraph 2, for instance, provides two narrow categories of things that, together with the text of a treaty ("including its preamble and annexes"), "comprise" "[t]he context for the purpose of the interpretation of a treaty."¹⁰⁷ Similarly, Paragraph 3 lists three sources that "shall be taken into account, together with the context."¹⁰⁸ Furthermore, Article 32 indicates that "recourse" to "supplementary means of interpretation" is available only in certain situations.¹⁰⁹ Note that these provisions restrict, at most, the consideration of "supplementary" sources, but they do not restrict the allowable *inferences* that can be made from the context or "purpose" or dictate how a conflict between conventional meaning and purpose should be resolved.

maintains that purpose (as gleaned from the language of the text) should be considered. See John F. Manning, *What Divides Textualists from Purposivists?*, 106 COLUM. L. REV. 70, 75 (2006) (explaining that "modern textualists understand that the meaning of statutory language (like all language) depends wholly on context.").

103. A typical author in typical circumstances is motivated to exploit external factors in order to provide the interpreter with sufficiently clear evidence that will enable the interpreter to interpret the inscription as intended. In fact, the author cannot reasonably expect the interpreter to recognize the intended meaning unless the author believes that sufficient cues exist and are available to the interpreter to determine the intended meaning. See SLOCUM, *supra* note 1, at 93.

104. See, e.g., Jonathan R. Siegel, *The Inexorable Radicalization of Textualism*, 158 U. PA. L. REV. 117 (2009) (describing interpretive disputes between textualists and intentionalists).

105. See Manning, *supra* note 102, at 70 (explaining that textualists privilege "semantic context (evidence about the way a reasonable person uses words) rather than policy context (evidence about the way a reasonable person solves problems).").

106. See MIRA ARIEL, *DEFINING PRAGMATICS* 6 (2010) (describing the "semantics/pragmatics division of labor").

107. See *supra* notes 47–49 and accompanying text.

108. See *supra* notes 50–52 and accompanying text.

109. See *id.*

Even putting aside the lack of explicit constraints on the consideration of “purpose,” a closer look at Article 32 reveals that any restrictions on “supplementary” sources are not particularly consequential. Recall that Article 32 allows consideration of such things as the “preparatory work of the treaty” in order to “confirm the meaning resulting from the application of article 31”¹¹⁰ This language indicates that “supplementary means of interpretation” can *always* be considered in order to “confirm the meaning” determined under Article 31, but ponder the incoherence of such a standard. Why ask a question that admits of only one answer and outcome? What if the “supplementary means” do not “confirm” the court’s interpretation but rather suggest that a different interpretation was intended? Must the intended interpretation be rejected? If so, consideration of the “supplementary means of interpretation” to “confirm” has no legal significance.¹¹¹ Conversely, if the court can choose the intended interpretation, Article 31 would effectively not restrict the consideration of contextual evidence after all.¹¹²

Furthermore, consider other tensions between Articles 31 and 32. For instance, can an interpretation based on an ordinary meaning situated in its “context” and made in “good faith,” and in light of the “object and purpose” of the treaty, be “absurd” or “unreasonable,” in the language of Article 32?¹¹³ Surely, the consideration of “purpose” would allow a court to avoid such a result even without resort to Article 32. Even more unlikely, can a “special meaning” that is established as what the parties intended per Article 31(4) be regarded as absurd or unreasonable under Article 32, and thus rejected? If so, a court would not be basing its interpretation on the communicative meaning of the text, let alone its ordinary meaning, but rather on some notion of desirable policy outcomes.¹¹⁴ Which policy outcome must be prioritized, such as fairness or a desire to protect the weaker party to the agreement, is left unregulated by Article 32.

C. The Vienna Convention and the Indeterminacy of Ordinary Meaning

Articles 31 and 32 thus list the very general elements of legal interpretation without attempting to define the terms or provide any explicit guidance regarding how conflicts between these elements should be resolved. The most significant unresolved tensions in the VCLT are between ordinary meaning and context and purpose. The very nature of ordinary meaning requires a limit on the purposes for which contextual inferences may be used.¹¹⁵ Yet, by failing to resolve the

110. *See id.*

111. *See* GARDINER, *supra* note 32, at 349 (indicating that “[a]n expansive meaning of ‘confirm’ is confirmed by the preparatory work.”).

112. At most, it would create a sequential process of interpretation but without any required finding to progress to the last stage of the process, which would be consideration of “supplemental means of interpretation.”

113. *See supra* notes 41–45, 102–03 and accompanying text (describing the “good faith” requirement).

114. These policy outcomes might include such things as fairness or the promotion of desirable social behaviors.

115. *See infra* note 122 and accompanying text (defining ordinary meaning).

tensions between ordinary meaning and context and purpose, the VCLT does not adequately constrain judicial discretion and, in fact, cannot be viewed as mandating an ordinary meaning approach to interpretation. Rather, the VCLT allows courts to determine the communicative meaning of a provision however they see fit to do so.

1. The Vienna Convention's Failure to Define Ordinary Meaning

Article 31 directs that a reviewing court consider “context” and “object and purpose” in the first subsection and provides a list of authorized sources of context in the second subsection, but the danger of judicial consideration of context and purpose comes not from the source of contextual and purposive information but rather from *how* the contextual and purposive evidence is used. That is, contextual and purposive evidence may be used, consistently with ordinary meaning, as a mechanism to help select the correct conventional meaning of a term. Alternatively, contextual and purposive evidence may be used broadly to speculate about the parties’ intent or the purpose of the treaty. By failing to provide guidance about the permissible uses of context, the VCLT authorizes a mechanism for subverting the ordinary meaning requirement.

Because of the importance of context and purpose, it may seem that a legal interpreter should in many cases seek to determine the communicative meaning of a text.¹¹⁶ Yet, communicative meaning, if broadly conceived, carries a certain risk that the interpreter will make speculative (some might say subjective) inferences about the speaker’s specific intentions regarding an interpretive dispute. Recall that the drafters of the VCLT wished to minimize such a risk.¹¹⁷ Furthermore, these speculative inferences may be given disproportionate weight in order to defeat a competing meaning based on conventions of meaning and rules about how linguistic expressions are built up from the meanings of their composite parts in a rule-governed fashion.¹¹⁸ Furthermore, the very notion of an “ordinary” meaning is one that is not based on the intent of the parties or appropriate only in the narrow context of a specific treaty. Instead to be “ordinary,” a meaning must be generalizable across contexts in some way.¹¹⁹ Otherwise, the concept would be incoherent.¹²⁰ Still, context and purpose are nevertheless important. With natural-language understanding, and particularly with legal texts, the objective is to determine what a sentence actually means in

116. See *supra* notes 92–94 and accompanying text (defining communicative meaning).

117. See *supra* Part II.A.

118. See M. LYNNE MURPHY & ANU KOSKELA, KEY TERMS IN SEMANTICS 36 (2010) (“The principle of compositionality states that the meaning of a complex linguistic expression is built up from the meanings of its composite parts in a rule-governed fashion.”). Thus, a sentence is compositional if its meaning is the sum of the meanings of its parts and of the relations of the parts.

119. See SLOCUM, *supra* note 1, at 27 (explaining that the “tension between the inherent requirement of ordinary meaning that it be generalizable across contexts and the reality that meaning is inherently contextual.”). Thus, “[o]ne way to capture generalizable meanings is to conceive of ordinary meaning as being primarily based on semantic meaning.” *Id.*

120. Consider an unusual meaning that is nevertheless deemed to be the intended meaning based on consideration of the entire context of a treaty. While the meaning might be said to be the “correct” meaning, there would be nothing “ordinary” about such a meaning.

a given context of utterance rather than just what it could mean in general.¹²¹ Thus, because an ordinary meaning must be based on conventions of language, rather than inferences about speaker intent, but also allow for consideration of some kinds of contextual and purposive evidence, ordinary meaning must be understood as something like the following: *the meaning the language conveys to an ordinary member of the community based on conventions of meaning and other systematicities of language, such as compositionality, and a limited notion of context that helps select the appropriate conventional meanings of the relevant terms.*¹²²

We now have possible definitions of both ordinary meaning and communicative meaning. As the respective definitions indicate, context and purpose are relevant to the determination of both communicative meaning and ordinary meaning but serve a different function depending on the relevant objective of interpretation. When communicative meaning is sought, inferences are made from context about the purpose of a treaty, even when such pragmatic inferences are unrelated to, in tension with, or are more precise than applicable conventions of language.¹²³ In contrast, when ordinary meaning is sought, a narrower range of inferences is relevant. Specifically, the inferences must be relevant to conventions of language, rather than authorial intent. By limiting these inferences, the tension between conventional meaning and context is mitigated, and ordinary meaning becomes a far more coherent concept.¹²⁴

The VCLT's structure allows courts to choose between ordinary meaning and communicative meaning, and to define communicative meaning broadly. Article 31(4) by itself mandates a communicative meaning standard in providing that a court "shall" give a "special meaning" "to a term if it is established that the parties so intended."¹²⁵ Furthermore, sections (2) and (3) of Article 31 support such a conclusion by referencing context that focuses on the intent of the parties rather than conventions of language, such as "any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation."¹²⁶ The VCLT cannot therefore be viewed as mandating an ordinary meaning standard. Furthermore, it is questionable whether there are any real restrictions on the kinds of contextual evidence that can be considered or, more importantly, the sorts of inferences that can be drawn from the evidence.¹²⁷

121. See *supra* notes 106–10 and accompanying text (describing the importance of context).

122. See *supra* note 118 (defining compositionality).

123. See *supra* notes 94–96 and accompanying text (defining "communicative meaning." See also Andreas Stokke, *Intention-Sensitive Semantics*, 175 SYNTHESE 383, 385 (2010) (describing the distinction between narrow and wide context and explaining that narrow context concerns the use of context to help determine semantic reference while wide context concerns context that the audience uses in determining the speaker's intentions).

124. See *supra* notes 106–10 and accompanying text (explaining the inevitability of contextual inferences).

125. See *supra* notes 53 and accompanying text (describing Article 31(4)).

126. See *supra* notes 37–65 and accompanying text (describing the provisions of Article 31).

127. See *supra* Part II.B.2.

2. Using Context to Resolve Indeterminacy and Underdeterminacy

The VCLT also fails to constrain judicial interpretive discretion in other, more subtle ways. Consider again the role of context. Contextual considerations are ubiquitous, but context can serve different functions in resolving potential indeterminacy, which makes the VCLT's references to "context" and "object and purpose" without any meaningful elaboration of their permissible uses particularly unhelpful. Natural languages are full of indeterminate words when considered in isolation, but the language is not always indeterminate in the sense of the intended meaning being unclear to the comprehender. The language is instead merely potentially indeterminate and relevant context may clarify the expressions.¹²⁸ In some situations, this clarification should be viewed as an aspect of determining the ordinary meaning of the provision. Consider two broad categories that describe the different ways in which a term can be indeterminate. In situations involving *underspecificity*, where it is undetermined which of several determinate meanings were intended, consideration of context in order to select one of the meanings is still within the scope of ordinary meaning.¹²⁹ In contrast, in situations involving *underdeterminacy*, where the proposition expressed cannot be determined by linguistic meaning alone, consideration of context in order to select a meaning necessarily exceeds the scope of ordinary meaning.¹³⁰ In such situations, meaning is selected on some other basis, such as communicative meaning or policy grounds.¹³¹

When contextual evidence is consulted in order to resolve underspecificity, its resolution involves the selection of the appropriate ordinary meaning based on the relevant circumstances. The contextual evidence helps to select one ordinary meaning and reject other candidates. In many circumstances, the consideration of such contextual evidence is automatic and uncontroversial. Thus, for example, should you be asked to find a "bank," it will likely be clear based on contextual evidence whether "bank" applies to the functions of a financial institution as opposed to the building where a financial institution offers services (or, more obviously, the slopes bordering rivers).

The resolution of other sources of potential indeterminacy may be difficult to justify as falling within the boundaries of ordinary meaning.¹³² Most notably,

128. See DAVID LANIUS, *STRATEGIC INDETERMINACY IN THE LAW* 11–12 (2019) (explaining the difference between potential indeterminacy and actual indeterminacy).

129. See Una Stojnić et al., *Distinguishing Ambiguity from Underspecificity*, in *PRAGMATICS, TRUTH AND UNDERSPECIFICATION: TOWARDS AN ATLAS OF MEANING* 149, 149–50 (Ken Turner & Laurence Horn eds., 2018) (explaining Jay Atlas's doctrine of underspecificity). There are multiple ways in which a provision can be underspecified. For instance, an expression is lexically ambiguous if it has two or more unrelated lexical meanings. See LANIUS, *supra* note 128, at 16. In contrast, an expression is polysemous if it has two or more (related) senses of one lexical meaning. See *id.* at 17.

130. ROBYN CARSTON, *THOUGHTS AND UTTERANCES: THE PRAGMATICS OF EXPLICIT COMMUNICATION* 20–21 (2002) (explaining underdeterminacy).

131. See *id.*

132. Resolution of some types of indeterminacy may also not be based on communicative meaning if the interpretation is based on policy preferences rather than valid inferences about the meaning communicated by the treaty. In any case, although it is uncontroversial that different types of indeterminacy exist, there is debate regarding the tests used to identify the different forms. See, e.g., David Tuggy, *Ambiguity, Polysemy, and Vagueness*, 4 *COGNITIVE LINGUISTICS* 273, 273 (1993) (explaining that

the resolution of underdeterminacy is not a matter of lexical meaning but rather must be based on inferences about authorial intent or purpose (or some normative ground). For example, consider potential indeterminacy regarding an expression's single meaning.¹³³ In contrast to situations involving multiple possible meanings, an expression is *semantically vague* if its one meaning allows for borderline cases.¹³⁴ For instance, a gradable adjective such as "tall" is vague because it allows for borderline cases and, thus, multiple, equally permissible, ways to apply the expression.¹³⁵ The term, viewed in its context of usage, has a core of settled meaning, but there will be borderline cases that can be decided either way (often arbitrarily),¹³⁶ akin to H.L.A. Hart's famous "core of settled meaning" and "penumbra of debatable cases" framework.¹³⁷ When borderline cases are possible, it is often said that the expression is "fuzzy."¹³⁸ Expressions such as "many friends" or "about 20" are fuzzy because the phrases may have an invariant core (for example, 100,000 is not "about 20" but 19.999 is) but an indistinct boundary that often varies depending on the context.¹³⁹

In cases involving vagueness, precisification of the relevant concept is, by definition, not a matter of lexical meaning, even when considering contextual evidence that, in other scenarios, might allow a court to select one ordinary meaning rather than another.¹⁴⁰ Rather, in such situations, resolution of the interpretive dispute must be based on inferences about authorial intent or purpose (or some other ground such as public policy).¹⁴¹ Although resolution of semantic vagueness is well within the proper judicial function, doing so goes beyond the scope of ordinary meaning. The court is not determining a meaning based on

"[t]raditional linguistic tests for ambiguity vs. vagueness fail to yield clear judgments in such cases, and in fact can easily be made to yield opposing judgments by varying the context"). The details of these debates are not relevant to the basic observation that often the ordinary meaning of language is indeterminate and resolution of the indeterminacy must be based on something other than ordinary meaning.

133. Of course, an expression may be indeterminate in multiple ways and resolution of the separate indeterminacies may be based on different kinds of evidence.

134. See LANIUS, *supra* note 128, at 21.

135. See *id.* at 174–75.

136. See generally DIANA RAFFMAN, UNRULY WORDS: A STUDY OF VAGUE LANGUAGE 106 (2014) (claiming that vagueness is a form of arbitrariness). See also SAGID SALLES, VAGUENESS AS ARBITRARINESS (2021).

137. See H.L.A. Hart, *Positivism and the Separation of Law and Morals*, 71 HARV. L. REV. 593, 607 (1958).

138. The term "fuzziness" is used in linguistics and philosophy of language to describe the boundaries of categories (such as "vehicle") that are "ill-defined, rather than sharp." MURPHY & KOSKELA, *supra* note 188, at 72. Commentators often describe fuzziness as a type of vagueness.

139. Grace Zhang, *Fuzziness—Vagueness—Generality—Ambiguity*, 29 J. PRAGMATICS 13, 14–15 (1998) [hereinafter Zhang, *Fuzziness-Vagueness*]; see also Grace Zhang, *Fuzziness and Relevance Theory*, 22 FOREIGN LANGUAGE & LITERATURE STUD. 73, 74–75 (2005).

140. Ambiguity and vagueness also contrast with respect to the speaker's discretion. If a word is ambiguous, the speaker can resolve the ambiguity without departing from literal usage. See Roy Sorensen, *Vagueness*, THE STANFORD ENCYCLOPEDIA OF PHILOSOPHY (Summer 2018 Edition), Edward N. Zalta (ed.), URL = <<https://plato.stanford.edu/archives/sum2018/entries/vagueness/>>. The speaker can specify that she meant 'child' to express the concept of an immature offspring. If a word is vague, the speaker cannot resolve the borderline case. See *id.* As a matter of language, the speaker cannot make 'child' literally mean anyone under eighteen just by intending it. See *id.* Instead, in such a situation, the speaker has taken a "special liberty with the term to suit a special purpose." *Id.* The issue becomes one of speaker intent rather than ordinary usage.

141. See *id.*

conventions of meaning and other systematicities of language.¹⁴² Rather, ordinary meaning is insufficient to resolve the interpretive dispute, and the court must necessarily pursue other methods of doing so.

Another example of underdeterminacy involves the concept of generality. The basic notion of generality focuses on an expression with a meaning of a “genus of more than one species.”¹⁴³ For instance, the term “color” is general because it includes within its scope “red,” “green,” “blue,” etc.¹⁴⁴ The term “parent” is general because it includes within its scope “mother” and “father.”¹⁴⁵ As these examples suggest, the more general the expression, the less informative the utterance becomes (and vice versa).¹⁴⁶ Yet, whether generality causes indeterminacy depends on an expression’s context of use (which includes the purpose of the conversation).¹⁴⁷ One can easily imagine scenarios when “color” or “parent” could be used when indeterminacy would not result (if a more specific meaning is needed).¹⁴⁸

Generality is a common feature of language, and expressions involving generality are not legally interesting when an interpretive dispute is not based on the generality. In many cases, though, the ordinary meaning of an expression might be too general to resolve a particular interpretive dispute. In fact, these situations are particularly common with ordinary meaning, as non-legal communications often do not involve the sorts of issues of meaning that are raised in legal cases and typically do not require the level of precision necessary to resolve many legal disputes. Scholars have observed that speakers and hearers mean “*approximately*” the same thing by the same words, “and [] that is all that matters for practical purposes.”¹⁴⁹ Yet, legal cases often require binary and precise answers to interpretive disputes (for example, is a Segway a vehicle),¹⁵⁰ and approximateness is insufficient.¹⁵¹ Interpretation must therefore often yield precise answers to questions the enacting legislature did not likely consider. As a result, resolution of these interpretive disputes goes beyond the scope of ordinary meaning. That is, ordinary meaning is insufficient to resolve the interpretive dispute, and the court must necessarily pursue other methods of doing so.

142. See *supra* note 122 and accompanying text (giving a definition of ordinary meaning).

143. See Brendan S. Gillon, *Ambiguity, Generality, and Indeterminacy: Tests and Definitions*, 85 SYNTHESE 391, 394 (1990).

144. *Id.*

145. See *id.*

146. See *id.*

147. See *id.* at 394-95.

148. For example, the paragraph in which the sentence is contained might focus solely on a blue car or a particular mother.

149. Timothy Williamson, *Vagueness, Indeterminacy, and Social Meaning*, 16 CRITICAL STUD. 61, 73 (2001).

150. A Segway PT is a two-wheeled, self-balancing personal transporter by Segway Inc. See Segway x2 SE, SEGWAY, <https://www.segway.com/segway-x2-se>; Matt McFarland, *Segway Was Supposed to Change the World. Two Decades Later, It Just Might*, CNN BUSINESS (Oct. 30, 2018), <https://www.cnn.com/2018/10/30/tech/segway-history/index.html> [<https://perma.cc/KY32-C4MG>].

151. In contrast, speakers and hearers in non-legal conversations typically mean “*approximately*” the same thing by the same words, “and [] that is all that matters for practical purposes.” Williamson, *supra* note 149, at 73.

The VCLT does not adequately address the different types of indeterminacies, such as the important distinction between underspecificity and underdeterminacy. Recall that Article 32 indicates that “supplementary means of interpretation” can be used to “determine the meaning” when the “interpretation according to article 31” is “ambiguous or obscure.” These sources of information may well assist a court in choosing between two determinate meanings, thereby resolving situations involving underspecificity.¹⁵² The sources serve a different role in resolving underdeterminacy, however. Underdeterminacy is resolved through non-language precisification, which gives the interpreter a significant degree of discretion.¹⁵³ By definition, in cases of underdeterminacy, the ordinary meaning of the language is indeterminate, but the resulting interpretive discretion is unconstrained by Article 32 because no alternative objective of interpretation (such as communicative meaning) is explicitly mandated. A reviewing court is thus left without guidance regarding the purpose for which the “supplementary means” should be considered, whether it is to help decide the interpretive dispute in light of the broad purpose of the treaty or on some other basis.¹⁵⁴

3. Judicial Creation of Interpretive Principles as Constraining Judicial Discretion under the Vienna Convention

One possible answer to our critique of the language and structure of the VCLT is that existing judicial interpretive practice, which includes long-standing canons and similar interpretive principles, should be expected to make VCLT’s interpretive directive more determinate.¹⁵⁵ Such an expectation is unwarranted. Without more explicit guidance in the VCLT, courts are quite unlikely to develop new interpretive principles that significantly constrain judicial discretion. Furthermore, reliance on existing interpretive canons would not do so. For instance, the ILC considered it unnecessary to incorporate the effectiveness canon because it was already “embodied” in Article 31 through the concepts of good faith and purpose.¹⁵⁶ Yet the effectiveness canon is as unbounded and untethered to sources of meaning as the latter concepts. Ironically, the ILC refrained from explicitly referring to the effectiveness canon also because “to do so might encourage attempts to extend the meaning of treaties illegitimately on the basis of the so-called principle of ‘effective interpretation,’” thereby recognizing at once the pliability of canons and the need to constrain judicial

152. See *supra* note 168 and accompanying text (describing underspecificity).

153. See *supra* notes 169–70 and accompanying text (describing underdeterminacy).

154. This situation again raises the problem that Article 31 allows the court without restriction to consider “purpose,” creating the possibility that a court would never need to indicate that it is relying on Article 32 in resolving the interpretive dispute. See *supra* Part II.B.2.

155. See generally William Baude & Stephen E. Sachs, *The Law of Interpretation*, 130 HARV. L. REV. 1079 (2017).

156. See ILC Commentary, *supra* note 39, at 219 cmt. 6 (“When a treaty is open to two interpretations one of which does and the other does not enable the treaty to have appropriate effects, good faith and the objects and purposes of the treaty demand that the former interpretation should be adopted. Properly limited and applied, the maxim does not call for an ‘extensive’ or ‘liberal’ interpretation in the sense of an interpretation going beyond what is expressed or necessarily to be implied in the terms of the treaty. Accordingly, it did not seem to the Commission that there was any need to include a separate provision on this point.”).

discretion accordingly.¹⁵⁷

Consider also, by way of analogy, the interpretation of statutes. It has long been stated that “American courts have no intelligible, generally accepted, and consistently applied theory of statutory interpretation.”¹⁵⁸ Even so, courts agree about the relevance of ordinary meaning and, to that end, apply various long-standing interpretive principles often referred to as “textual canons.” Textual canons “set forth inferences that are usually drawn from the drafter’s choice of words, their grammatical placement in sentences, and their relationship to other parts of the ‘whole’ statute.”¹⁵⁹ Yet, even these jurisprudentially conservative interpretive principles that focus on text have been criticized as not serving to restrain judicial discretion.

A few of the many reasons why judicial development of textual canons has not served to constrain judicial discretion are analogous to the VCLT. First, it is unclear whether some often used textual canons set forth accurate presumptions of language usage, which has likely lessened judicial confidence in them and has contributed to their arbitrary application. Some commentators have tied textual canons to ordinary language usage,¹⁶⁰ but many of the canons have been harshly criticized by courts and commentators as setting forth inaccurate presumptions about language usage.¹⁶¹ Second, in order to effectively constrain judicial discretion, an interpretive regime featuring judicially-created canons would need to be far more developed than what currently exists, where multiple, conflicting canons often apply to a single interpretive dispute and judges are free to either ignore canons or order them based on their own predilections.¹⁶² Furthermore, and perhaps most importantly, reliance on canons may give the illusion of constrained judicial discretion, but, as scholars have demonstrated, application of many of the canons allow courts to engage in unregulated reliance on perceived statutory purpose.¹⁶³

It is thus somewhat fanciful to think that judges would fill in the gaps of the VCLT’s interpretive directive with canons or other interpretive principles that constrain judicial discretion. Certainly, the VCLT provides no guidance about such interpretive principles. The VCLT neither compels nor restricts

157. *Id.*

158. HENRY M. HART, JR. & ALBERT M. SACKS, *THE LEGAL PROCESS* 1169 (William N. Eskridge, Jr. & Philip P. Frickey eds., 1994).

159. WILLIAM ESKRIDGE & PHILIP FRICKEY, *CASES AND MATERIALS ON LEGISLATION: STATUTES AND THE CREATION OF PUBLIC POLICY* 634 (1995).

160. Justice Scalia and Garner list various textual canons among their “valid” canons of construction. See SCALIA & GARNER, *supra* note 66, at 195.

161. See, e.g., Kevin Tobia, Brian G. Slocum & Victoria Nourse, *Statutory Interpretation from the Outside*, COLUM. L. REV. (forthcoming) (offering empirical evidence that ordinary people do not apply some traditional textual canons); Jesse M. Cross, *When Courts Should Ignore Statutory Text*, 26 GEO. MASON L. REV. 453 (2018) (arguing that many canons of construction must be modified or discarded because they are inaccurate).

162. See William N. Eskridge, Jr., *The New Textualism and Normative Canons*, 113 COLUM. L. REV. 531, 531 (2013) (explaining that “[f]or any difficult case, there will be as many as twelve to fifteen relevant ‘valid canons’ cutting in different directions, leaving considerable room for judicial cherry-picking.”).

163. See Anita S. Krishnakumar, *Backdoor Purposivism*, 69 DUKE L.J. 1275 (2020) (explaining that textualist Justices have engaged in purposive analysis when applying contextual canons).

judicial consideration of any number of interpretive canons outside Articles 31 and 32, including, for example, *contra proferentem* (ambiguity or vagueness in the legal instrument should be construed against the interests of the drafter) or *in dubio mitius* (where there is doubt about the existence of a treaty obligation, no obligation will be found so as to avoid limiting state sovereignty).¹⁶⁴ A court can thus cherry pick any (or none) of these canons in each interpretive exercise, thereby rendering the application of canons a discretionary judicial decision.¹⁶⁵

III. A HYPOTHETICAL ON ORDINARY MEANING IN INTERNATIONAL LAW

The VCLT thus fails to address basic issues relating to its interpretive directive, but the challenges of an ordinary meaning standard in international law even extend beyond the issues already discussed. An examination of these challenges reveals both undertheorized normative choices that courts must make in applying the ordinary meaning standard in specific cases as well as the necessity of relying on other objectives of interpretation to resolve interpretive disputes. In the next part, we analyze various cases interpreting treaties to exemplify these particular challenges. To frame that discussion, as well as illustrate the concepts discussed in Part II, we first introduce here some of these issues by way of an evolving hypothetical, set appropriately enough across an international border, designed to illustrate the difficulties of looking to ordinary meaning in international law.

Consider a scenario that modifies H.L.A. Hart's famous hypothetical involving a legal rule that "forbids you to take a vehicle into the public park."¹⁶⁶ In our case, the park lies across the boundaries of and straddles two countries we will call North and South.¹⁶⁷ The park is co-managed by both states and governed by a bilateral treaty between the two (the "Park Treaty"). The Park Treaty provides *inter alia* that any dispute arising thereunder is to be resolved by an ad hoc Tribunal. Classically, as in Hart's hypothetical, an interpretive dispute arising under the Park Treaty might involve the meaning of the term "vehicle" and whether a bicycle falls under the definition.

Relying on Article 31(1) of the VCLT, the Tribunal would assert that "vehicle" should be given its ordinary meaning.¹⁶⁸ Typically, courts determine

164. See generally Sean D. Murphy, *The Utility and Limits of Canons of Construction in Public International Law*, in BETWEEN THE LINES OF THE VIENNA CONVENTION: CANONS OF CONSTRUCTION AND OTHER INTERPRETIVE PRINCIPLES IN PUBLIC INTERNATIONAL LAW: A PRACTITIONERS' HANDBOOK 13, 19 (JOSEPH KLINGLER, YURI PARKHOMENKO & CONSTANTINOS SALONIDIS, eds. 2018) (noting that "the ILC left open the door for the use of other canons or principles as supplementary means of interpretation, falling within the broad terms of Vienna Convention Article 32").

165. See *id.* at 20 (noting that "the possibility of competing canons being invoked has arisen in international adjudication, and academics have certainly charged that the use of such canons provides judges a largely unconstrained ability to decide cases in accordance with their own preferences") (citations omitted).

166. Hart, *supra* note 137, at 607.

167. Topographically—but not in terms of legal landscape—we imagine a binational park along the lines of Peace Arch Park, which bestrides Canada and the United States. see <https://parks.state.wa.us/562/Peace-Arch> (last visited July 12, 2021), or perhaps Friendship Park, which straddles Mexico and the United States, although without the distinctly unfriendly steel mesh fence that runs along the border in the park, see <https://www.friendshippark.org/visitus> (last visited July 12, 2021).

168. See *supra* notes 37–43 and accompanying text (describing Article 31(1)).

the ordinary meaning of an undefined word by consulting a dictionary definition,¹⁶⁹ or often by just relying on “common sense” or personal judgments about usage.¹⁷⁰ The Tribunal therefore might consult a dictionary definition and, if so, would find something like the following:

any means in or by which someone travels or something is carried or conveyed; a means of conveyance or transport: a motor vehicle; space vehicles.¹⁷¹

Pursuant to the definition if read literally, a bicycle would fall under the treaty. Judicial reliance on dictionary definitions as statements of ordinary meaning, however, are problematic for several reasons. Multiple dictionaries exist, each typically with multiple definitions of any given word, forcing the court to select among varying definitions.¹⁷² This means that definitions are often selected arbitrarily or with the purpose of bolstering the court’s pre-existing view of how the case should be resolved.¹⁷³ The Tribunal may consult a dictionary definition as a way of resolving uncertainty about the specific features of a word, but a dictionary definition provides a general description of the concept involved, and is typically not intended to provide a necessary and sufficient set of features for membership in the category at issue.¹⁷⁴ For instance, is it accurate to state that something is a “vehicle” if it provides a means to carry something, as a necessary-and-sufficient view of the above definition would indicate? Clearly not.

One response to the indeterminacy of dictionary definitions is the observation that Article 31 also directs that the “ordinary meaning” of a treaty’s terms should not be determined acontextually but rather in “context” and “in the light of its object and purpose.”¹⁷⁵ Conceivably, “context” and “purpose” could help select among various possible ordinary meanings.¹⁷⁶ Perhaps the purpose of the provision is to protect people in the park from “fast-moving mechanical objects” that might harm them (although one may wonder how that sole purpose

169. See James J. Brudney & Lawrence Baum, *Oasis or Mirage: The Supreme Court’s Thirst for Dictionaries in the Rehnquist and Roberts Eras*, 55 WM. & MARY L. REV. 483, 483, 486, 495 (2013) (explaining that, while the United States Supreme Court’s use of dictionaries was virtually non-existent before 1987, now as many as one-third of statutory decisions cite dictionary definitions).

170. See, e.g., *Carachuri-Rosendo v. Holder*, 560 U.S. 563, 573–74 (2010) (looking at the “commonsense conception” of statutory terms and concluding that the government argued “for a result that the English language tells us not to expect”).

171. This definition is from [dictionary.com/browse/vehicle?s=t](https://www.dictionary.com/browse/vehicle?s=t). It is very similar to the definition considered by Justice Scalia when analyzing Hart’s no-vehicles-in-the park hypothetical. See SCALIA & GARNER, *supra* note 66, at 37.

172. See Stephen C. Mouritsen, *The Dictionary is Not a Fortress: Definitional Fallacies and a Corpus-Based Approach to Plain Meaning*, 2010 BYU L. REV. 1915, 1919 (2010) (explaining the “demonstrably incorrect assumptions about the content and structure of dictionaries” held by courts).

173. See Aprill, *supra* note 92, at 297–30 (stating that the level of “linguistic analysis” performed by courts rarely rises above “dictionary shopping”).

174. See SLOCUM, *supra* note 1, at 3; Kevin P. Tobia, *Testing Ordinary Meaning: An Experimental Assessment of What Dictionary Definitions and Linguistic Usage Data Tell Legal Interpreters*, 134 HARV. L. REV. 726 (2020) (illustrating through empirical evidence that dictionaries give broad definitions that may not correspond with the ordinary meanings of words).

175. See *supra* notes 37–43 and accompanying text (describing Article 31(1)).

176. This would be easiest with homonyms, which occur when two or more words have the same spelling but different meanings and origins. For example, in most situations contextual evidence would resolve whether “bank” referred to a financial institution or the side of a river.

can be clear from the language of the treaty and other supporting documents).¹⁷⁷ If so, that purpose might convince the Tribunal to select a narrow meaning that might be limited to “sizable, fast moving wheeled conveyances powered by an internal combustion engine,” or something similar.¹⁷⁸

Even with such a simple provision, the consideration of context as described in the above paragraph raises difficult issues regarding whether the interpretive process has exceeded the scope of ordinary meaning.¹⁷⁹ The Tribunal inferred from the relevant context a purpose narrower than the dictionary definition, and if it relies on that purpose to choose the “engine” definition it will have acted consistently with the long-standing judicial practice of narrowing the scope of potentially overbroad statutes.¹⁸⁰ Yet, choosing the “engine” definition on the basis of purpose is not an example of resolving lexical uncertainty through contextual inferences but, rather, is more appropriately defended as a determination of communicative rather than ordinary meaning.¹⁸¹ Furthermore, consider the interaction between semantic content and context. Is the “engine” definition the ordinary meaning of “vehicle” or the ordinary meaning of “vehicle” within the context of the Park Treaty? If the latter, how is a meaning tied so closely to the particular circumstances of a situation “ordinary”? To be “ordinary,” a meaning must be generalizable across contexts in some way, or else the concept is incoherent.¹⁸² In what way is the “sizable, fast moving wheeled conveyances powered by an internal combustion engine” definition of “vehicle” generalizable? Does it apply to legal texts involving parks, only treaties involving parks, treaties involving parks with the same purpose, *etc.*?

Consider, instead, a scenario where there is evidence that North and South intended that “vehicle” not cover any emergency vehicles, such as ambulances and police cars.¹⁸³ Article 31(4) would be applicable because it provides that “[a] special meaning shall be given to a term if it is established that the parties so intended.” The “special meaning” referenced by Article 31(4) though is not an “ordinary meaning.” Rather, it represents the *communicative meaning* of the text

177. See SCALIA & GARNER, *supra* note 66, at 28 (discussing the possible purposes of a no-vehicles-in-the-park statute). The critical question is how “purpose” is ascertained and what sources are consulted in making the determination. See *supra* notes 113–119 and accompanying text.

178. See SCALIA & GARNER, *supra* note 66, at 37.

179. See *supra* notes 112–26 and accompanying text (discussing how context can be used for different purposes, only some of which are consistent with ordinary meaning).

180. Perhaps the classic explanation of how courts often narrow the meanings of statutes is found in David L. Shapiro, *Continuity and Change in Statutory Interpretation*, 67 N.Y.U. L. REV. 921 (1992).

181. See *supra* notes 123–37 and accompanying text (comparing communicative meaning and ordinary meaning).

182. See *supra* notes 119–22 and accompanying text (describing ordinary meaning).

183. Whether the prohibition on any “vehicle” in the park excludes ambulances and police cars presents a classic issue of whether the literal meaning of a provision controls, even when that meaning may lead to outcomes the drafters of the provision likely would not have intended. The textualist position, as advocated by Justice Scalia, is that ambulances are excluded from the park. See SCALIA & GARNER, *supra* note 66, at 38. Justice Scalia hoped that the “undeniable exclusion of ambulances by the text of the ordinance is countermanded by an ordinance or court-made rule exempting emergency vehicles from traffic rules.” *Id.* at 39. In contrast, a purposivist may well decline to interpret the prohibition literally and make an exception for ambulances. See *id.* (“What lawmaking could possibly place the objective of peace and quiet above the objective of saving a human life?”).

because it is based on *the meaning an appropriate hearer would most reasonably take a speaker to be trying to convey in employing a given verbal vehicle in the given communicative-context*.¹⁸⁴ In fact, the existence of Article 31(4), and its effect of displacing an otherwise applicable ordinary meaning, means that the proper interpretive goal under Article 31 is *not* the ascertainment of ordinary meaning, as most commentators have accepted, but instead communicative meaning.¹⁸⁵

Perhaps instead of a dictionary definition of “vehicle,” the Tribunal relies on either case law where the term has been defined or some other legal text (such as a statute). Suppose the definition chosen by the Tribunal is from a Northern statute that defines “vehicle” as “every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices exclusively moved by human power”¹⁸⁶ Pursuant to this definition, a typical bicycle would not fall under the treaty.¹⁸⁷ Yet, the definition selected may not be the ordinary meaning of the term, in the sense that ordinary meaning requires that terms in legal texts be given their non-legal meanings.¹⁸⁸ Instead, the definition may constitute the *ordinary legal meaning* of “vehicle.”¹⁸⁹ The definition may thus be consistent with the ordinary meaning of “vehicle” as it is used in law, which may differ from the meaning “vehicle” has in non-legal communications.¹⁹⁰ The selection of a meaning from a statute or caselaw, however, does not guarantee that the meaning selected represents the ordinary legal meaning. It could be that the meaning is a minority one or that it is only one of a multitude of differing definitions.¹⁹¹

To complicate matters, as happens in international law, what if national differences intrude and contrary to Northern statutes, Southern statutes defined “vehicle” to include bicycles explicitly? Consider also temporal complications where, for example, a statutory definition (or case law or dictionary definitions) of “vehicle” changes over time from excluding bicycles to including them. Should a court assume that the ordinary meaning of “vehicle” has also changed, and if so, does Article 31 require that courts consider ordinary meaning to be fixed at the time of the treaty’s formation?

As the above no-vehicles-in-the-park hypothetical illustrates, there is an inherent tension between “context,” “purpose” and “ordinary meaning,” and this tension is particularly stark when context is considered in the resolution of potential indeterminacy. The more “context” that is considered, the less

184. See *supra* notes 85–94 and accompanying text (explaining the concept of communicative meaning).

185. See *supra* Part II.C.

186. This definition is taken from a Michigan statute defining “vehicle.” M.C.L. § 257.79; M.S.A. § 9.1879.

187. That is, a bicycle that is not powered by an engine.

188. See *supra* note 119–22 (describing ordinary meaning).

189. See SLOCUM, *supra* note 1, at 3 (describing “ordinary legal meaning”).

190. For instance, the word “assault” has both a technical, legal meaning and an ordinary meaning and occasionally courts must determine which meaning controls. See *Patrie v. Area Coop. Educ. Servs.*, No. CV000440418S, 2004 WL 1489555 (Conn. Super. Ct. June 16, 2004) (deciding that the ordinary meaning of “assault” was proper).

191. But even that conclusion would be unwarranted without empirical study.

generalizable the definition and the more likely it is that what is being determined is not ordinary meaning but communicative meaning. Considering the explicit mandate in Article 31(4) that any “special meaning” intended by the parties should be controlling, it may be said that Article 31 directs courts to identify the communicative meaning of a treaty, even if it is often the case that ordinary meaning will be influential because the parties had no discernible intention regarding the meaning of a term. Similarly, when context is considered in the resolution of potential indeterminacy, the inferences drawn from context may relate to communicative meaning or normative concerns, making any connection between ordinary meaning and the interpretation chosen merely coincidental.¹⁹² Furthermore, when courts choose meanings from other legal texts or judicial opinions, the meaning selected may be called the “ordinary legal meaning” rather than a meaning that corresponds with that used in non-legal communications. Finally, the issue of which community of language users to privilege arises when national, regional or local differences lead to a multiplicity of “ordinary meanings.”

IV. ILLUSTRATING THE VIENNA CONTENTION’S FAILURE TO PROVIDE ADEQUATE INTERPRETIVE GUIDANCE

The incoherence of the VCLT and the difficulties of the ordinary meaning concept in international law can be illustrated through theoretical discussions and hypothetical treaties, as demonstrated above, but the issues are starkly manifested in various cases where courts have purported to interpret treaties in accordance with the VCLT. We illustrate the issues through discussion of several cases decided by international and national courts and involving treaty interpretation in different areas of international law. As discussed below, while these courts reliably aver the primacy of the VCLT’s ordinary meaning standard, their failure to address ordinary meaning in a convincing manner demonstrates the various challenges of applying an ordinary meaning standard in international law. Specifically, we use the cases to illustrate the following issues: 1) the tension between ordinary meaning and context, and the resulting judicial resort to communicative meaning; 2) judicial selection of legal meaning rather than ordinary meaning; 3) the problems created by the broad terms that are commonplace in treaties, which require courts to resolve interpretive disputes on bases other than ordinary meaning; 4) the overlooked, normative choices involved in selecting a particular group of language users to privilege as the standard language users for purposes of a particular treaty; 5) the decision to recognize implied meanings that transcend explicit statutory language; and 6) the temporal issues that inevitably arise when language changes meaning over time.

192. In fact, non-language considerations may be required in order to resolve some types of indeterminacy. See *supra* notes 128–54 and accompanying text.

A. The Tension Between Ordinary Meaning and Context

Recall that in *Witold Litwa v Poland*, the European Court of Human Rights had to decide whether the term “alcoholics” included a person such as the petitioner, who had been detained at a “sobering-up centre” for having caused a public disturbance while intoxicated.¹⁹³ The legality of the detention was at issue because Article 5(1) of the European Convention on Human Rights guarantees that “[n]o one shall be deprived of his liberty” except *inter alia* in the case of “the lawful detention of persons for the prevention of the spreading of infectious diseases, of persons of unsound mind, alcoholics or drug addicts or vagrants.”¹⁹⁴ The now sober if unapologetic applicant maintained that his detention was unlawful as “‘intoxicated persons’ could not be identified with ‘alcoholics’ since the latter term—both in its scientific and lay usage—denoted persons addicted to and dependent on alcohol, not temporarily under its influence.”¹⁹⁵ In contrast, the respondent government objected to interpreting the term “alcoholics” according to its ordinary meaning under Article 31(1); it argued that Article 31(4) and therefore the “special meaning” of “alcoholics” applied instead, and that the *travaux* indicated that Article 5 was designed to allow states to “combat[]...drunkenness.”¹⁹⁶

The court agreed with the applicant that “alcoholics” should be given its ordinary meaning under Article 31(1) of the VCLT and acknowledged that the term “in its common usage, denotes persons who are addicted to alcohol.”¹⁹⁷ Nevertheless, the court indicated that the relevant “context, including” the other terms in the list in Article 5(1)(e), compelled a broader meaning for “alcoholics.” Specifically, the court reasoned that

[t]here is a link among the categories of people listed in 5(1)(e) in that they may be deprived of their liberty either in order to be given medical treatment or because of considerations dictated by social policy, or on both medical and social grounds. It is therefore legitimate to conclude from this context that a predominant reason why the Convention allows the persons mentioned in paragraph 1 (e) of Article 5 to be deprived of their liberty is not only that they are dangerous for public safety but also that their own interests may necessitate their detention¹⁹⁸

In light of the “object and purpose” of Article 5(1)(e), the court held that “alcoholics” should not be “interpreted as only allowing the detention of ‘alcoholics’ in the limited sense of persons in a clinical state of ‘alcoholism.’”¹⁹⁹ Thus, “persons who are not medically diagnosed as ‘alcoholics,’ but whose conduct and behavior under the influence of alcohol pose a threat to public order or themselves, can be taken into custody for the protection of the public or their own interests, such as their health or personal safety.”²⁰⁰ This (extra)ordinary

193. See *Witold Litwa v. Poland*, App. No. 26629/95, 33 Eur. H.R. Rep. 53 paras. 6-8 (2000).

194. See *id.* ¶ 44; European Convention, *supra* note 5.

195. *Id.* ¶ 52.

196. *Id.* ¶ 55.

197. See *id.* ¶¶ 59–60.

198. *Id.*

199. *Id.* ¶ 61.

200. *Id.*

meaning of “alcoholics” was, in the view of the court, further confirmed by the *travaux* cited by the government.²⁰¹

The *Witold Litwa* opinion illustrates how under Article 31, ordinary meaning can be both asserted by the court as the proper standard of interpretation and implicitly rejected in favor of some other meaning. The potential for such a result lies in the inherent tension, unrecognized by the court as well as the VCLT, between context and ordinary meaning.²⁰² The court purported to apply Article 31, but the meaning it gave “alcoholics,” based on the context of the European Convention, cannot, even arguably, be viewed as its ordinary meaning.²⁰³ For a meaning to be ordinary, it has to be generalizable in some way.²⁰⁴ Yet, the court made no attempt to establish how “alcoholics” is (even sometimes) used as a term to refer to people who are merely intoxicated. There was, for example, no reference to dictionary definitions, or even references to medical terminology or definitions from other legal texts or judicial decisions.²⁰⁵ Rather, the court based its interpretation on the “context” and “purpose” of the Convention, which in its view indicated a broader meaning for “alcoholics”; it then conveniently looked back to the *travaux* to “confirm” that very same interpretation.²⁰⁶

The opinion illustrates that “context” can be used for different purposes, some of which may help determine ordinary meaning and others which help avoid it in favor of some other meaning.²⁰⁷ Broad context might include inferences about meaning drawn from outside the language of the treaty at issue. For instance, the broad context that informed the court’s decision was derived partially from the Convention’s *travaux*, which indicated that Article 5 was intended to allow “signatory States to take measures to combat vagrancy and ‘drunkenness’”²⁰⁸ This reliance on broad context, though, did not assist the court in selecting among plausible candidates for ordinary meaning.²⁰⁹ Instead, the broad context was used to legitimize a departure from ordinary meaning in

201. *See id.* ¶ 63.

202. *See supra* Part II.D.

203. *See* GARDINER, *supra* note 32, at 3 (“The Court relied on context, object and purpose to displace an *apparently unequivocal ordinary meaning*.”) (emphasis added).

204. *See supra* notes 119–20 and accompanying text (describing the generalizability requirement of ordinary meaning).

205. Conceivably, such evidence might establish a technical or specialized meaning of “alcoholics” that could be broader than the ordinary meaning. The court would then need to hold that the specialized meaning was the intended meaning.

206. *See Litwa*, 33 Eur. H.R. Rep. paras. 60–63. Ultimately, although the court determined that the applicant was an “alcoholic,” it concluded that his detention was not “lawful” and free from arbitrariness since less severe measures for addressing drunkenness were available in applicant’s case. *See id.* paras. 77–80.

207. Even a determination of ordinary meaning requires consideration of context, although the contextual considerations should be narrower because the court is not attempting to determine the communicative meaning of the text. *See supra* notes 119–22 and accompanying text (offering a definition of “ordinary meaning.”).

208. *See Litwa*, 33 Eur. H.R. Rep. 53 para. 63. While it is true that the court technically referred to the *travaux* only to confirm the meaning of “alcoholics” under Article 32 rather than as the “context” in Article 31(1), the court plainly considered the same in the process of interpreting “alcoholics” since the government was relying on the *travaux* in its arguments before the court. *See id.* ¶¶ 55, 63.

209. *See supra* Part II.C (explaining how context may be relevant to the resolution of different kinds of indeterminacies).

favor of communicative meaning (broadly defined).²¹⁰

As compared to broad context, narrow context more often can be used to help determine ordinary meaning, as opposed to some deviation from it. For instance, in support of the broad meaning it gave “alcoholics,” the court in *Witold Litwa* relied on narrow context in drawing inferences from the other terms in the list in Article 5(1)(e). Recall that the court characterized the list as being based on “considerations dictated by social policy or medical treatment.”²¹¹ The court thus inferred from the commonality of social policy or medical treatment that the Convention’s purpose was to allow for the detention of persons “for the protection of the public or their own interests, such as their health or personal safety.”²¹²

By characterizing the list of terms in Article 5(1)(e) in light of some perceived commonality, the court could claim that it was (implicitly) adhering to a familiar textual canon of interpretation, *noscitur a sociis*, in an attempt to determine the ordinary meaning of “alcoholics.”²¹³ The main function of a textual canon like *noscitur a sociis* is to narrow the scope of a statutory provision.²¹⁴ The canon’s broad direction is that the meaning of words in a statute should be determined in light of the words with which they are associated.²¹⁵ By considering the meanings of surrounding words, particularly those in a list with the term at issue, a court can choose a narrow meaning for the relevant term when its potential meaning is broader than those of the surrounding terms.²¹⁶

As an example of the typical functioning of the *noscitur a sociis* canon, consider the U.S. Supreme Court’s decision in *Yates v. United States*, where the interpretive question was whether the phrase “any record, document, or tangible object” included undersized red grouper, and thus criminalized the action of throwing fish overboard to avoid being found in violation of a separate provision barring undersize fishing.²¹⁷ The Court, relying in part on the *noscitur a sociis* canon, determined that “tangible object” should include only those things “used to record or preserve information.”²¹⁸ It is debatable that a common meaning of “tangible object” is something “used to record or preserve information,” if one seeks a meaning representing the concept’s parameters.²¹⁹ Rather, the “used to record or preserve information” meaning represents a subset of the “tangible

210. See *supra* notes 88–94 and accompanying text (defining communicative meaning).

211. *Litwa*, 33 Eur. H.R. Rep. 53 para. 60.

212. *Id.* ¶ 61.

213. Many of these principles, including *noscitur a sociis*, have received considerable support from judges and commentators. Justice Scalia and Garner, for instance, list the *noscitur a sociis* canon among their “valid” canons of interpretation. See SCALIA & GARNER, *supra* note 66, at 195.

214. See Shapiro, *supra* note 180, at 929 (explaining that the canon “is frequently invoked to suggest that a phrase which in isolation appears to have a broad scope should be construed more narrowly when considered in its linguistic setting”).

215. See *id.*

216. See *id.*

217. 574 U.S. 528, 534–35 (2015).

218. *Id.* at 549.

219. That is, no one would claim that as a general matter the ordinary meaning of “tangible object” is *something used to record or preserve information*. Rather, the question is whether the sentential and broader context indicated that a narrower meaning was intended that would capture only a subset of objects that might otherwise fall under “tangible object.”

object” category, selected in part on the basis of the other two items in the list, “record” and “document.” At the least, though, the term as used would not constitute a novel meaning that is inconsistent with other uses of the word (even if it is narrower in scope). In contrast, the *Witold Litwa* court did not narrow the meaning of “alcoholics” to something less common but permissible.²²⁰ Instead, the court broadened its meaning based on its view of the provision’s purpose, choosing a meaning that would seem odd to neutral observers in virtually any context and in contravention to the common meaning of the term. A more accurate framing of the decision in *Witold Litwa* is that the court determined the communicative meaning of “alcoholics,” rather than its ordinary meaning.²²¹ Furthermore, the court did so without relying on Article 31(4). There might after all be some objection to the notion that, in the terms of 31(4), it was sufficiently “established that the parties” intended for “alcoholics” to be given the “special meaning” the court selected.²²² Instead of relying on 31(4), though, the court could indicate that it was simply engaging in the normal search for ordinary meaning by considering “context” and “purpose.” By doing so, however, the court is not resolving lexical uncertainty through contextual inferences but, rather, is prioritizing the apparent intent of the parties. Thus, the court’s idiosyncratic definition of “alcoholics” is not the ordinary meaning of “alcoholics” but rather, in the opinion of the court, the meaning of “alcoholics” consistent with the context and purpose of the Convention.²²³ By following this methodology, a court can seek communicative meaning, broadly conceived, while purporting to be engaging in the more conservative judicial task of determining ordinary meaning.

B. Distinguishing Between Ordinary Meaning and Legal Meaning

It is uncontroversial that the concept of ordinary meaning depends on general conventions of meaning specific to a community of language users. Problems arise though when there are multiple relevant communities of language users, forcing the court to decide which community’s meaning will control. Furthermore, ordinary meaning typically makes reference to a layperson’s understanding of language, compounding the difficulty of defining the relevant community with respect to treaties. As with any legal text, the court should ask whether the relevant community is one of lawyers or the general public. If the

220. The term “tangible object” may not commonly, or ever, be limited in the way the Court limited the term in *Yates*. Nevertheless, it is quite different to limit a term to some recognized subset (even if small) of it than it is to expand its scope to include situations that are not understood to fall within it. While sufficient context may make the intended meaning clear, that meaning should not be thought of as an “ordinary meaning.”

221. This is not to agree with the court’s interpretation of the term but rather to argue that it can only be defended on a theory that it represents the communicative rather than the ordinary meaning of the term.

222. The question would be what level of evidence is necessary to conclude that it is “established” that the parties intended some meaning under Article 31. If, for example, some unusual meaning is alleged, is it sufficient that the meaning is established by a preponderance of the evidence, or is some stronger showing required?

223. Recall, that to be “ordinary” a meaning has to be generalizable across contexts. See *supra* notes 129-132 and accompanying text.

answer is the former and the text involves legal terms of art, the court is likely determining legal rather than ordinary meaning.

Consider the English case of *Hiscox v. Outhwaite*, which involved an arbitration seated in London and governed by English law.²²⁴ The sole arbitrator happened, however, to date and sign the relevant award in Paris, and that fact was explicitly represented in the award. The issue before the High Court was whether the award was “made” in Paris or London within the meaning of section 7(1) of the Arbitration Act of 1975, the implementing legislation of the English adoption of the Convention on the Recognition and Enforcement of Arbitral Awards (New York Convention).²²⁵ Both the Act and the Convention employed the same term in their tests, namely whether the award was one “made . . . in the territory of a State other than [the State where the recognition and enforcement of such awards are sought].”²²⁶ The answer potentially impacted the court’s jurisdiction over the proceedings as it would constitute a Convention award if made in Paris and not London.

In determining that the award was “made” in London, the High Court gave effect to the legal meaning of the term by relying on an article by Dr. F. A. Mann.²²⁷ Applying Article 31 of the VCLT, Dr. Mann had concluded that the proper interpretation of the term “made” was informed by the legal concept of the “arbitral seat,” which “is by no means necessarily identical with the place or places where hearings are being held or where the parties or the arbitrators reside. It is rather the place fixed in the contract or the submission or the minutes of the hearing or is found to be the central point of the arbitral proceedings.”²²⁸ Accordingly, since the arbitration “was heard in England and conducted under English procedural rules,” and “bears all the hallmarks of an English arbitration apart from the signature of the award, which supplies the only, and very slender, connection with France,” the High Court concluded that the award was “made” in London and not in Paris.²²⁹

On appeal, the Court of Appeal came to the opposite conclusion and held that the award was “made” in Paris and not London. In doing so, it also relied on legal meaning, but this time one under *English* law. Specifically, it looked to the English case of *Brooke v. Mitchell*, in which the court held that “an award is ‘made and published’ when the arbitrator, by some act, has expressed his final determination on the matters referred to him.”²³⁰ On the facts before it, the Court of Appeal found that final determination to have “happened [] when the arbitrator

224. [1992] 1 App. Cas. 562.

225. *Id.* at 568 (quoting the Act in defining a Convention award as “an award made in pursuance of an arbitration agreement in the territory of the State, other than the United Kingdom, which is a party to the New York Convention”).

226. *See id.*

227. *See* [1991] 2 Lloyd’s Rep. 1, 7-8 (quoting F.A. Mann, *Where is an “Award” Made?*, 1 ARB. INT’L 107, 108 (1985) and noting that the article “seems . . . directly in point, and most cogent and persuasive.”).

228. *Id.*

229. *Id.* at 2, 8.

230. *Hiscox v. Outhwaite*, [1992] 1 App. Cas. 562, 580 (quotations omitted).

signed in Paris”²³¹

On further appeal, the House of Lords affirmed the Court of Appeal’s decision that the award was “made” in Paris, but on a somewhat different ground:

[An award] is simply a written instrument and I can see no context for departing from what I apprehend to be the ordinary, common and natural construction of the word ‘made.’ A document is made when and where it is perfected. An award is perfected when it is signed.²³²

The court did not cite to any authority in support of its holding, although the concept of perfecting a document by signing it can be found in English law.²³³ In other words, notwithstanding its reference to ordinary meaning, the House of Lords was also employing a legal meaning,²³⁴ albeit one different from that in *either* of the lower court decisions.

It may well be that the House of Lord’s interpretation was the ordinary legal meaning under *English law*,²³⁵ but that already puts us at a remove from the ordinary meaning of “made” under the New York Convention. That each of the three courts would arrive at a distinct legal meaning under different laws even while ostensibly searching for the one ordinary meaning demonstrates the discretion (some would say arbitrariness) inherent in the determination, especially when courts fail to appreciate the distinction between ordinary meaning and ordinary legal meaning. That the Court of Appeal and the House of Lords would reach reflexively for a legal meaning under English law rather than international law—and even though at least one judge acknowledged explicitly that *Brooke v. Mitchell* is not decisive because “the Convention and the Act giving effect to it do not fall to be construed in the light of the English law of arbitration”²³⁶—illustrate how courts elide the distinction between ordinary meaning and ordinary legal meaning. The dispute further illustrates the natural inclination of a reviewing court to select the meaning with which it is most familiar.

C. The Problem of Insufficient Ordinary Meaning

Even when ordinary meaning is sought, there may be no ordinary meaning to find or it may not be sufficiently definite to resolve the interpretive dispute. The ordinary meaning doctrine assumes a correspondence between legal and

231. *Id.* See also *id.* at 578 (noting after quoting *Brooke v. Mitchell* that “I see nothing to suggest in the present case that the arbitrator had not declared his final mind from the moment he put his conclusions in a formal document and signed it in front of a witness [in Paris].”).

232. *Id.* at 594.

233. See e.g., *Hyde and South Bank Housing Association v. Kain*, Supreme Court of Judicature, Court of Appeal (Civil Division) (27 July 1989), 1989 WL 650008 (noting that “under Order 59, rule 4(1), of the Rules of the Supreme Court time for appealing from an order of the High Court runs from the date on which the judgment or order of the court below was *signed, entered or otherwise perfected*”) (emphasis added).

234. See GARDINER, *supra* note 32, at 53 (noting that “to the judges in the Court of Appeal and House of Lords, ‘made’ was a word which, perhaps because they were conditioned by their acquaintance with English law and practice, could only be equated with ‘signed’”).

235. See *id.* (“Probably to most English lawyers, ‘made’ in connection with any legal instrument would have the clear meaning of ‘executed’, ‘perfected’, or . . . ‘signed.’”).

236. See *Hiscox v. Outhwaite*, [1991] 2 Lloyd’s Rep 1, 7–8.

non-legal language, but in many situations ordinary, non-legal language is not sufficient to resolve legal interpretive disputes. Some legal disputes involve technical legal terms that are not used in non-legal communications.²³⁷ Many other disputes involve phrases that reference concepts, often intangible, that do not necessarily require a specialized legal meaning, but also do not exist outside of the law.²³⁸ In contrast to familiar terms such as “alcoholics” and “made,” the meaning of, say, a “most-favored-nation provision” in an investment treaty cannot readily be determined by reference to non-legal sources,²³⁹ and thus does not have an “ordinary” meaning. Furthermore, the narrowing of generalities is a common feature of language comprehension, as many natural language expressions are quite general.²⁴⁰ In these situations it may often be unclear which features are aspects of a word’s lexical meaning, resulting in two or more (related) senses (referred to as multi-dimensional polysemy).²⁴¹ Thus, as a matter of ordinary meaning, there will not be a consensus about which features must always be present.²⁴² Such terms will therefore require non-language based precisification in order to resolve legal interpretive disputes.

Consider an interpretive dispute about whether electrical power should be considered “goods,” which would trigger GATT rules, or “services,” which would trigger GATS rules.²⁴³ Of course, in ordinary, non-legal language, the categories are often not mutually exclusive, and an object might fall within the scope of multiple categories.²⁴⁴ A court could of course consult other bodies of law in which “goods” and “services” have been sufficiently defined, either in the text or by judicial decision, in order to resolve the dispute.²⁴⁵ Such resolution would not necessarily involve “ordinary meaning,” however, but rather a stipulated definition or judicial precisification. A court could consult dictionary definitions, a common judicial method of determining ordinary meaning, but if the definition is not based on legal definitions, it is likely to be too general to resolve close issues of meaning,²⁴⁶ or there may be a multitude of dictionary

237. See Peter Tiersma, *The Rocky Road to Legal Reform: Improving the Language of Jury Instructions*, 66 BROOK. L. REV. 1081, 1102 (2001) (explaining that “judges sometimes assume that words are part of ordinary speech when in fact they are technical terms with a legal meaning unknown to the lay public”).

238. See SLOCUM, *supra* note 1, at 239–40 (explaining why such terms do not have an ordinary meaning).

239. On most-favored-nation provisions, see generally Jarrod Wong, *The Application of Most-Favored-Nation Clauses to Dispute Resolution Provisions in Bilateral Investment Treaties*, 3 ASIAN J. WTO & INT’L HEALTH L. & POL’Y 171 (2008).

240. See LEVINSON, *supra* note 119, at 29 (arguing that the design requirements of natural languages “maximize[] inference”).

241. See LANIUS, *supra* note 167, at 33.

242. *Id.* at 32.

243. See generally Fiona Smith & Lorna Woods, *A Distinction without a Difference: Exploring the Boundary between Goods and Services in the World Trade Organization and the European Union*, 12 COLUM. J. EUR. L. 1 (2005).

244. See CHANG-FA LO, *supra* note 93, at 152.

245. One source for the meaning of “goods” would be the definition in § 2-105(1) of the Uniform Commercial Code.

246. For instance, a definition of “service” as “an act of helpful activity” is not particularly useful in distinguishing between goods and services. See <https://www.dictionary.com/browse/services?s=t>.

definitions that are in some tension with one another.²⁴⁷ In that event, the court's decision will not be based on ordinary meaning, but, rather, a meaning shaped to fit the circumstances of the relevant treaty.

Take the example of the *Kasikili/Sedudu Island* case in which the ICJ had to determine which of two channels around an island constituted "the main channel" referenced but undefined in an 1890 Anglo-German treaty, a confounding proposition given the sharp variations in the river's water level over seasons and along its course.²⁴⁸ Applying Article 31, the court stated that its first task was to "determine the ordinary meaning of the words 'main channel' by reference to the most commonly used criteria in international law and practice"²⁴⁹ Because the court found differing dictionary definitions of "main channel," including "the widest deepest channel, in particular the one which carries the greatest flow of water" and "the middle, deepest, or most navigable channel," it purported to apply "all of the criteria" notwithstanding their incompatibility.²⁵⁰ In her concurring opinion, Judge Higgins questioned the court's reliance on ordinary meaning:

I find this [approach] somewhat fanciful. . . . And it seems that no "ordinary meaning" of this term exists, either in international law or in hydrology, which allows the Court to suppose that it is engaging in such an exercise. The analysis on which the Court has embarked is in reality far from an interpretation of words by reference to their "ordinary meaning". The Court is really doing something rather different. It is applying a somewhat general term, decided upon by the parties in 1890, to a geographic and hydrographic situation much better understood today.²⁵¹

The *Hiscox* case, discussed above, is another prototypical example where non-legal ordinary meaning was too general to resolve the interpretive dispute, and the court would be required to shape any ordinary meaning to fit the circumstances of the relevant treaty.²⁵² Recall that the House of Lords concluded that the award was "made" in Paris on the basis of the "ordinary, common and natural construction of the word 'made,'" that is, its ordinary meaning.²⁵³ The case could not, however, have been decided based only on the ordinary meaning of the word "made." "Made," like many words, has a very general meaning. When used as a verb with an object, its meaning is something like "to bring into existence by shaping or changing material, combining parts, etc." or "to produce; cause to exist or happen; bring about[.]"²⁵⁴ These sorts of very general definitions, which are typically what one finds in dictionaries, are obviously

247. See Appellate Body Report, *United States — Measures Affecting the Cross-Border Supply of Gambling and Betting Services*, ¶ 164 & n. 193, WT/DS285/AB/R (Apr. 7, 2005) (noting that "[d]ictionaries, alone, are not necessarily capable of resolving complex questions of interpretation, as they typically aim to catalogue *all* meanings of words—be those meanings common or rare, universal or specialized.") (emphasis in original).

248. *Kasikili/Sedudu Island* (Bots. v. Namib.), 1999 I.C.J. 1045, 1062-1063 (Dec. 13).

249. *Id.* at 1063.

250. *Id.* at 1064-65.

251. *Id.* at 1113-14.

252. See *supra* notes 229-41 and accompanying text.

253. *Hiscox v. Outhwaite*, [1992] 1 App. Cas. 562, 594.

254. This definition is from <https://www.dictionary.com/browse/made> (last visited January 31, 2020).

indeterminate regarding the precise interpretive issue that must be decided. Consider, for example, an automobile that is manufactured in England except that it is painted and detailed in France, where it will be sold. Is it so clear that the ordinary meaning of “made” dictates that we refer to the car as having been “made” in France? Such a conclusion is far from obvious, and the House of Lords notably failed to reference any evidence or authority for its view of the ordinary meaning of “made.”²⁵⁵

A further flaw in *Hiscox* is the House of Lords’s focus on an individual word, “made,” when the correct object of an ordinary meaning determination is not an individual word but rather the sentence in which it is contained.²⁵⁶ Sentential context can be crucial in determining the semantics of individual words.²⁵⁷ For instance, in combination with the subject or object of a sentence, a verb can form a meaning that is more specific than either itself or the subject or object.²⁵⁸ Thus, in *Hiscox* the ordinary meaning focus should not be on “made” but, rather, on what it means to have “an award made in pursuance of an arbitration agreement.”²⁵⁹

Although relevant, in many cases sentential context does not help precisify the individual word at issue. In various ways, “made” is rendered more precise by including the object that is made. “Made” is a complex event that involves a development process and a resulting state.²⁶⁰ The development process, and thereby the meaning of “made,” is different with an “award” as compared to something else like a “vehicle.” Perhaps a “vehicle” substantially manufactured in England but finished in France is “made” in England, but the opposite may be true for an “award.” What is clear, though, is that the ordinary meaning of “made,” by itself, is quite general and not precise enough to resolve the interpretive dispute in *Hiscox*. Even when sentential context is considered, the ordinary meaning may not be precise enough to resolve the interpretive dispute. In such cases, to the extent that broad context is considered, it will be used to determine communicative meaning or some other meaning that reflects good policy.

D. Determining Ordinary Meaning in a Diverse World

1. Defining the Appropriate Ordinary Meaning Community

As the above analysis of *Hiscox v. Outhwaite* reflects, particular national conventions of language—there, the English legal meaning of

255. See *supra* note 238 and accompanying text.

256. See SLOCUM, *supra* note 1, at 107 (arguing that the “relevant inquiry is not the ordinary meaning of words . . . , which encompass numerous and varied senses . . . , [but rather] the sentences in which the words appear”).

257. See JAMES PUSTEJOVSKY, *THE GENERATIVE LEXICON* 236 (1995) (indicating that “lexical semantics can be made sensitive to sentence level compositional processes as well as discourse level inference mechanisms”).

258. See *id.*

259. This definition of an award comes from the English Arbitration Act of 1975 rather than the New York Convention. See *supra* note 230.

260. See PUSTEJOVSKY, *supra* note 308, at 55.

“made”—complicate efforts to discern ordinary meaning.²⁶¹ An ordinary meaning standard thus raises the question of *whose* ordinary meaning should control. This issue is glossed over in domestic courts but cannot be so easily ignored in international cases, where variations among speech communities are more patent, especially when treaties are drafted in multiple languages. Such differences among speech communities may pose difficult issues when courts determine the literal meaning of treaty language, but the difficulties are more acute when part of the meaning must be implied. In such situations, reviewing courts should ensure that the implied meanings are easily accessible to all of the groups subject to a treaty.

Consider *Joslin v. New Zealand*,²⁶² a case that involved a proceeding before the United Nations Human Rights Committee (HRC) and the meaning of the International Covenant on Civil and Political Rights (ICCPR).²⁶³ The ICCPR, together with the Universal Declaration of Human Rights and the International Covenant on Economic Social and Cultural Rights, comprise the International Bill of Human Rights.²⁶⁴ Article 2(1) of the ICCPR provides that:

Each State Party to the present Covenant undertakes to respect and to ensure to all individuals within its territory and subject to its Jurisdiction the rights recognized in the present Covenant, without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.²⁶⁵

One of the rights protected is the right to marry as expressed in Article 23:

(2) The right of men and women of marriageable age to marry and found a family shall be recognised.²⁶⁶

Additionally, Article 26 provides that

All persons are equal before the law and are entitled without any discrimination to the equal protection of the law. In this respect, the law shall prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground such as race, colour, sex, language, religion, political or other opinion, national, or social origin, property, birth or other status.²⁶⁷

In 2002, two lesbian couples, who had unsuccessfully applied to the local registrar for marriage licenses under New Zealand’s Marriage Act 1955, submitted a communication to the HRC under the First Optional Protocol of the ICCPR.²⁶⁸ The registrar had rejected their applications on the basis that the Marriage Act applied only to marriage between a man and a woman, and New

261. See *supra* Part IV.B.

262. See Communication No. 902/1999, *Joslin v. New Zealand*, U.N. GAOR 75th Sess. at 215, Hum. Rts. Committee, U.N. Doc. A/57/40 (July 17, 2002).

263. ICCPR, *supra* note 6.

264. See Office of the High Comm’r for Human Rights, Fact Sheet No. 2 (Rev. 1), The International Bill of Human Rights (1996), <https://www.ohchr.org/documents/publications/factsheet2rev.1en.pdf>

265. ICCPR, *supra* note 6, art. 2(1).

266. *Id.*, art. 23(2)179; see also Universal Declaration of Human Rights, G.A. Res. 217 (III) A, (Dec. 10, 1948) [hereinafter UDHR] (Article 16 contains a right to marry written in nearly identical terms to that in Article 23 of the ICCPR).

267. ICCPR, *supra* note 6, art. 26.

268. See Communication No. 902/1999, *supra* note 262, at 2–3.

Zealand courts had sided with the registrar, declining their applications for a declaration that they were entitled to marry under the Marriage Act.²⁶⁹ The couples argued to the HRC that the Marriage Act violated the nondiscrimination rights ensconced in the ICCPR.²⁷⁰ In an opinion short on analysis, the HRC decided against the couples, stating the following:

Given the existence of a specific provision in the Covenant on the right to marriage, any claim that this right has been violated must be considered in the light of this provision. Article 23, paragraph 2, of the Covenant is the only substantive provision in the Covenant which defines a right by using the term “men and women”, rather than “every human being”, “everyone” and “all persons”. Use of the term “men and women”, rather than the general terms used elsewhere in Part III of the Covenant, has been consistently and uniformly understood as indicating that the treaty obligation of States parties stemming from article 23, paragraph 2, of the Covenant is to recognize as marriage only the union between a man and a woman wishing to marry each other.²⁷¹

This interpretation by the HRC on the right to marry under the ICCPR has been criticized by commentators on a number of grounds, including that it is inconsistent with prior HRC interpretations affirming the broad diversity of family structures protected under Article 23, and that Articles 2 and 26 prohibit discrimination on the basis of sexual orientation.²⁷² For our purposes, however, it is apparent that whatever the outcome, national differences regarding what constitutes marriage, family and non-discrimination mean that reviewing courts must privilege one community’s meanings over others. At the time *Joslin* was decided, only one country—The Netherlands—had legalized same-sex marriage, whereas there are 24 countries (including New Zealand) that do so as of this writing.²⁷³ While that still leaves a large number of parties to the ICCPR that do not allow same-sex marriage—173 countries are party to the ICCPR as of this writing²⁷⁴—it is no longer clear, if it ever were, that the ordinary meaning of the “right of men and women of marriageable age to marry” does not extend to same-sex marriage. At the least, the ordinary meaning will vary according to the particular national community of users at issue. Yet, any interpretation of a term or phrase in any treaty should uniformly and necessarily apply across national boundaries to all state parties to the treaty.

The question of *whose* ordinary meaning should control is potentially compounded with respect to treaties that are authenticated in more than one language. For such plurilingual treaties, Article 33 provides that “the text is equally authoritative in each language” unless the parties agree otherwise, and

269. *See id.* at 3.

270. *See id.* at 4–5.

271. *Id.* at 11–12.

272. *See, e.g.,* Paula Gerber et al., *Marriage: A Human Right for All?*, 36 SYDNEY L. REV. 643, 649–653 (2014); Oscar I. Roos & Anita Mackay, *The Evolutionary Interpretation of Treaties and the Right to Marry: Why Article 23(2) of the ICCPR Should Be Reinterpreted to Encompass Same-Sex Marriage*, 49 GEO. WASH. INT’L L. REV. 879, 881–3 (2017).

273. *See* Countries Where Gay Marriage Is Legal 2019, <http://worldpopulationreview.com/countries/countries-where-gay-marriage-is-legal/>.

274. *See* Status of International Covenant on Civil and Political Rights, United Nations Treaty Collection, http://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-4&chapter=4&lang=en.

“the terms of the treaty are presumed to have the same meaning in each authentic text.”²⁷⁵ The ILC commentary to Article 33 does not, however, shed any additional light on the determination of such ordinary meaning. Instead, the commentary merely instructs that in resolving any ambiguity arising in the text of a plurilingual treaty, “the first rule for the interpreter is to look for the meaning intended by the parties to be attached to the term by applying the standard rules for the interpretation of treaties.”²⁷⁶ Yet, not only is there a greater risk of failing to apprehend implied meanings like that in *Joslin* across different languages (as discussed below), determining the ordinary meaning of explicit text in different languages can also lead to divergent outcomes. This can happen, for instance, when no equivalence exists between the critical terms in the different languages, and no satisfactory resolution is possible in the lexical gap created by such untranslatability.²⁷⁷

2. Interpretive Communities and Implied Meanings

The issue of *whose* ordinary meaning controls is particularly acute when implied meanings are at issue. In cases where a text is given an implied meaning, that meaning will not correspond with the literal meaning of the text. To simplify, literal meaning is based on the conventional meaning of language, which is primarily tied to the semantic meanings of the words.²⁷⁸ Yet, other systematicities of language occupy a space between conventions of language and unregulated inferences about authorial purpose. These systematicities might indicate a meaning that deviates from the literal meaning of the language, as the court found appropriate in *Joslin*. Whether that meaning can be defended as the ordinary meaning of the language is a contestable question that depends on assumptions about the abilities of the parties bound to treaties to understand subtle variations in meanings that transcend the explicit language, even when those parties come from different cultures and may speak the language of the treaty as a second language.

Recall that in *Joslin* the key phrase concerned “[t]he right of men and women of marriageable age to marry and found a family”²⁷⁹ The literal meaning of the language does not restrict the right of men to marry only women, and vice versa; that is, it does not explicitly limit protection to heterosexual marriages. After all, the provision does *not* state something like “[t]he right of men and women of marriageable age to marry *a person of the opposite gender* and found a family” Instead, the phrase contains a conjunction, “and,” and specifies two categories that are protected (“men” and “women”). In order to

275. VCLT, *supra* note 2, art. 33(1).

276. See ILC Commentary, *supra* note 39, at 225 cmt. 7.

277. See Lee Sechrest, Todd L. Fay, and S. M. Hafeez Zaidi, *Problems of Translation in Cross-Cultural Research*, 3 J. OF CROSS-CULTURAL PSYCHOLOGY 41 (1972).

278. FRANCOIS RECANATI, LITERAL MEANING 3 (2004). Literal meaning and semantic meaning are closely related concepts. For the purposes of this Article, any differences are not relevant. This section uses the term “literal meaning” in an effort to help the reader understand that the focus is on situations where an interpreter may be required to go beyond the conventional meanings of the individual words in order to discern the “correct” meaning.

279. See *supra* notes 262–71 and accompanying text.

justify on ordinary meaning grounds an interpretation that goes beyond the literal meaning of the language, some systematicity of language must be identified that sanctions such an interpretation.²⁸⁰

Consider a classic example of an expression, similar to the provision at issue in *Joslin*, where the communicated meaning is sometimes different from the literal meaning:

(1) John and Mary are married {to each other}.²⁸¹

In at least some cases the speaker uttering the non-bracketed material also communicates the bracketed addenda.²⁸² In such cases, the communicator makes a weaker explicit statement, from which a stronger one is inferred.²⁸³ There are various linguistic theories of how to account for communications that surpass what is literally said, but perhaps the most prominent is the philosopher H.P. Grice's pragmatic concept of *conversational implicature*. Grice distinguished between "what is said," which is closely related to the conventional meaning of the words, and what is "conversationally implicated," which can be inferred from the fact that an utterance has been made in context.²⁸⁴

What is conversationally implicated is not coded in the meaning of the words but, rather, is inferred on the basis of assumptions concerning a general principle of rationality known as the Cooperative Principle (CP) and its constituent maxims of conversation, which describe specific rational principles of interaction observed by people who obey the CP. The working out of an implicature is the result of rational reasoning that takes the CP and the conversational maxims into account.²⁸⁵ More specifically, the working out of a conversational implicature relies on the following conditions: 1) the conventional meaning of the word, 2) the CP and the conversational maxims, 3) the linguistic context, 4) the background knowledge, and 5) the fact that conditions 1 to 4 are available to both the speaker and hearer.²⁸⁶ Among other characteristics, conversational implicatures are defeasible (i.e., cancellable) and reinforceable (i.e., "it is often possible to add explicitly what is anyway implicated with less sense of redundancy than would be the case if one repeated the coded content").²⁸⁷ Thus, in (1), while the speaker uttering the non-bracketed material may well communicate the full sentence indicated (including the

280. See *supra* note 122 and accompanying text (defining ordinary meaning).

281. Lawrence R. Horn, *The Border Wars: A Neo-Gricean Perspective*, in *WHERE SEMANTICS MEETS PRAGMATICS* 24 (Klaus Von Heusinger & Ken Turner eds., 2006).

282. See *id.*

283. See *id.*

284. PAUL GRICE, *STUDIES IN THE WAY OF WORDS* 86 (1989).

285. In Grice's definition of a conversational implicature, only conversational implicatures are supposed to be worked out. When an implicature is automatically triggered, through a reference to the meaning of a word, the implicature is conventional. See *id.* at 46.

286. H.P. Grice, *Meaning*, 3 *PHILOSOPHICAL REVIEW* 50, 377–88 (1975).

287. LEVINSON, *supra* note 119, at 15. Levinson explains that, among other characteristics, conversational implicatures are defeasible (i.e., cancellable), calculable (i.e., "the more or less transparent derivation of the inference from premises that include the assumption of rational conversational activity"), nonconventional (i.e., "the noncoded nature of the inferences and their parasitic dependence on what is coded"), and reinforceable (i.e., "it is often possible to add explicitly what is anyway implicated with less sense of redundancy than would be the case if one repeated the coded content").

bracketed addenda), the process of recovering the bracketed addenda is pragmatic in nature. The bracketed addenda in (1) is therefore not part of the encoded meaning of the words because it is cancellable, as in:

- (2) John and Mary are married, but not to each other.

The bracketed addenda can also be stated explicitly with a lesser sense of redundancy than if the coded content were repeated, as in:

- (3) John and Mary are married, and to each other.²⁸⁸

As the above outline suggests, a systematic approach to implied meanings requires a complex set of assumptions about the knowledge shared by the parties to a communication. Assuming that the parties can account for the conventional meanings of explicit language is a comparatively conservative assumption, even if there are aspects that are problematic (such as identifying conventional meaning and issues of generality). While conversational implicatures are a routine aspect of conversations outside of the law, it is questionable whether the required assumptions are always realistic when the interpretation of treaties is involved. This is especially true when relevant parties may not be native speakers of English or were not involved in the drafting of the treaty.

While the recognition of conversational implicatures may be problematic in some situations involving sparse context, the HRC in *Joslin* did not merely rely on background knowledge but, instead, determined that aspects of the linguistic context warranted recognition of an implied meaning.²⁸⁹ Recall that the HRC observed that the provision at issue, Article 23(2), was the only substantive provision in the Covenant that defines a right by using the term “men and women,” rather than “every human being,” “everyone” and “all persons.”²⁹⁰ Certainly, without taking a position on the correct outcome of the case, this linguistic context bolsters the credibility of an implication that “men and women” is designed to protect only a man and a woman wishing to marry each other.²⁹¹ Furthermore, recognition of implied content in such a way is more justifiable as an aspect of ordinary meaning than is the selection of a lexical meaning that does not represent normal language usage, not to mention an inference about authorial purpose that cannot be tied to a regularity of language.²⁹² Still, courts need first to acknowledge that conversational implicatures may not translate across all members of the relevant community. Courts should therefore be reluctant to recognize conversational implicatures where the construction is not one that would be readily recognized as an expression that ordinarily conveys a meaning that exceeds its literal meaning.

288. Those enrichments that contribute to the meaning of an expression involve what Recanatì has called *saturation*. See FRANCOIS RECANATI, LITERAL MEANING 3 (2004).

289. Of course, the court may well have been unaware it was recognizing an implied meaning rather than an explicit one.

290. See *supra* note 271 and accompanying text.

291. Whether recognition of implicatures undermines good drafting practices is a separate matter.

292. As happened with “alcoholics.” See *supra* notes 243–47 and accompanying text.

E. Ordinary Meaning at Which Point in Time?

The final issue regarding ordinary meaning in international law concerns the evolution of language over time. Treaties are created at a fixed moment in time but the meaning of their terms may change over time, as illustrated by the interpretation of the “right of men and women ... to marry” in the *Joslin* case.²⁹³ Such change raises the question of whether the meaning of a treaty is to be determined by reference to the time the treaty was drafted or came into force—a mode of interpretation referred to as “static” interpretation, “historical language,” or the “principle of contemporaneity”—or by reference to the time of dispute, a method of interpretation known as “evolutionary” or “evolutive” interpretation, or “contemporary language.”²⁹⁴ The complexities of this debate on the relationship between interpretation and time, including with respect to the intertemporal rule, are beyond the scope of this Article.²⁹⁵ For our purposes, we wish simply to highlight that it adds yet another normative issue to the determination of ordinary meaning.

V. ASSESSING ORDINARY MEANING AND THE VIENNA CONVENTION

We have thus far identified unresolved tensions in the VCLT’s interpretive directive as well as some of the inherent difficulties in the determination of ordinary meaning in international law. It should be clear that the VCLT cannot be viewed as mandating ordinary meaning as the objective of treaty interpretation. Although Article 31 provides that a treaty “shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty,” any ordinary meaning determination can be displaced by evidence that the parties intended some different meaning.²⁹⁶ Furthermore, Article 31 allows courts to consider “context” and the “object and purpose” of the treaty, as well as other documents and actions reflecting the parties’ intent, any of which might be at odds with the ordinary meaning of the textual language.²⁹⁷ In addition, any ordinary meaning found is often too general to resolve the specific questions of meaning that are litigated, forcing courts to resolve disputes through other modes of reasoning.²⁹⁸ One resolution of the issues concerning Article 31’s ordinary meaning standard would be a conclusion that, notwithstanding its reference to “ordinary meaning,” the objective of interpretation it mandates is not ordinary meaning but rather “communicative meaning.”²⁹⁹ Unlike ordinary meaning, the focus of communicative meaning is the meaning intended by the parties to a treaty, which allows a court to consider conventions of meaning but also a broader range of evidence that goes beyond conventions of meaning and

293. See *supra* notes 203–28 and accompanying text.

294. Roos & Mackay, *supra* note 322, at 888–89. See generally EIRIK BJORGE, *THE EVOLUTIONARY INTERPRETATION OF TREATIES* (2014).

295. On the issue of interpreting treaty terms that change over time, see generally WYATT, *supra* note 18.

296. See *supra* notes 135–65 and accompanying text.

297. See *id.*

298. See *supra* notes 154–65 and accompanying text.

299. See Part II.C (comparing ordinary meaning and communicative meaning).

allows for inferences about intended meaning.³⁰⁰ Viewing the VCLT as mandating a communicative meaning objective of interpretation thus resolves some of the tensions discussed earlier, but even with this accommodation, the VCLT still fails to offer sufficient guidance to courts.

A legal directive to courts about interpretation is coherent and functional only if it constrains judicial discretion in meaningful ways. To constrain judicial discretion, a directive (or any process of interpretation) must include both an objective of interpretation and some notion of the allowable sources of meaning and the purpose for which they may be considered.³⁰¹ A coherent interpretive process will include sources of meaning that when applied accurately determine the standard defined by the objective of interpretation and exclude sources that do not do so. Consider the table below, which illustrates four possible objectives of interpretation along with the sources of meaning relevant to each objective.

		Objective of Interpretation			
		Literal Meaning	Ordinary Meaning	Communicative Meaning	Intentionalism
Sources of Meaning	Dictionaries	X	X	X	X
	Travaux Préparatoires—limited	X	X	X	X
	Travaux Préparatoires—broad			X	X
	Canons of Interpretation		X	X	X
	Purpose—limited	X	X	X	X
	Purpose—broad			X	X
	Context—limited	X	X	X	X
	Context—broad			X	X

If the objective of interpretation is ordinary meaning—which privileges conventions of meaning and other systematicities of language—it follows that the relevant sources of meaning include dictionaries but not evidence such as certain inferences from purpose which would sanction a meaning that deviates from ordinary meaning.³⁰² Conversely, if the objective of interpretation is intentionalism, there would be no obvious restriction on the type of evidence considered, although some sources of meaning might be inherently more persuasive than others.³⁰³

Problems of coherence emerge when there is a mismatch between the allowable sources of meaning and the objective of interpretation. Such a scenario would occur when the evidence that may be considered is narrower than what the relevant objective of interpretation would seem to require. To take an

300. See *id.*

301. That is, the sources of meaning, and how they can be used, should be consistent with the requirements of the objective of interpretation.

302. Both ordinary meaning and literal meaning approaches would be insufficient methodologies because the literal or ordinary meanings would sometimes not be sufficiently definite to decide the interpretive dispute, requiring resort to some other means of determining meaning (such as relying on purpose).

303. See Caleb Nelson, *What is Textualism?*, 91 VA. L. REV. 347 (2005) (analyzing the differences between intentionalism and textualism).

unlikely example, suppose that an interpretive directive provides that the only evidence of meaning that can be considered are dictionary definitions and a narrow notion of context that would include only the language of the treaty. It might be that if the objective of interpretation is *literal meaning*, no further evidence is needed.³⁰⁴ Problems would arise though under such severe evidential restrictions if the objective of interpretation is instead *intentionalism*. One can purport to infer the intent of the treaty drafters from dictionary definitions and evaluation of a limited range of context, but critics would correctly observe that any determinations of intent are likely to be flawed because other evidence is needed to accurately determine that intent.³⁰⁵

Consider, instead, the opposite scenario where the evidence that may be considered is broader than what the relevant objective of interpretation requires. For instance, imagine that an interpretive directive allows for a broad range of evidence to be considered, including *travaux*, purpose, and absurd results, but mandates that the objective of interpretation is *literal meaning*. Evidence from *travaux* or purpose may be used in a limited way to resolve disputes about which word meaning was intended, but a conclusion that a given meaning would result in absurd outcomes allows courts to avoid the literal interpretation.³⁰⁶ Furthermore, if the interpretive directive includes terms like “context” and “purpose” without limitations on how those sources may be used, courts may feel authorized to decide cases based on speculative inferences about intent or purpose that may deviate from the ordinary meaning of the terms at issue.³⁰⁷ Thus, the availability of a certain category of evidence might conflict with the mandated objective of interpretation. In such situations, the mandated, *de jure* objective of interpretation may not accurately describe the *de facto* objective of interpretation being applied by courts.

With the above discussion in mind, consider what the VCLT’s interpretive directive has accomplished. Article 31 is based on the view that the text must be presumed to be the authentic expression of the intentions of the parties and therefore the starting point of interpretation as opposed to an investigation *ab initio* into the intentions of the parties.³⁰⁸ Yet, the VCLT does not ensure that ordinary meaning will be prioritized because it does not preclude subjective inferences about the parties’ intent or purpose as the basis for an interpretation.³⁰⁹ Furthermore, while courts must always balance conflicting sources of meaning,

304. See *supra* note 319 and accompanying text (defining literal meaning).

305. Cf. Brian G. Slocum, *No Vehicles on Mars*, in JUSTICE SCALIA: RHETORIC & THE RULE OF LAW 58–60 (Brian G. Slocum & Francis J. Mootz III eds., 2019) (arguing that textualists like Justice Scalia purport to discern purpose from the language of a legal text but in reality base their views on their knowledge of the world).

306. See John F. Manning, *The Absurdity Doctrine*, 116 HARV. L. REV. 2387, 2389 (2003) (describing how the Court has long embraced the idea that “judges may deviate from even the clearest statutory text when a given application would otherwise produce ‘absurd’ results.”).

307. One example of such a case would be *Witold Litwa*. See *supra* notes and accompanying text (describing how the court allowed its speculations about the treaty’s purpose to displace the ordinary meaning of its terms).

308. See *supra* note 39 and accompanying text.

309. See *supra* Part.II.C.

the VCLT does not indicate how such conflicts should be resolved.³¹⁰ In addition, an interpretive directive is not coherent if the sole mandated objective cannot produce meanings that are sufficiently determinate to resolve interpretive disputes, such as situations when ordinary meaning is too general by itself to resolve the interpretive dispute. Yet, even if the VCLT is, more accurately, viewed as mandating communicative meaning, there are no obvious restrictions on the sorts of speculative inferences that may be used to resolve the interpretive dispute. Still, the text of the VCLT does suggest that judicial interpretations of treaties should not rest on policy grounds divorced from the text, intent of the parties, or other established principles of interpretation or international law.³¹¹ If this is the lasting principle of the VCLT's interpretive directive, it may be deemed a rather modest accomplishment.

On another view, perhaps the drafters of the VCLT should not be judged too harshly. The ordinary meaning principle has not been well-developed by courts generally, and an interpretive directive cannot reasonably be expected to address large-scale deficiencies in an objective of interpretation. Similarly, courts frequently emphasize the importance of "context" to interpretation, and may even specify which contextual sources are legitimate, but rarely explain for what purpose context may be considered.³¹² As well, no interpretive directive can fairly be expected to provide a comprehensive approach to interpretation that addresses every aspect of methodology, such as the correct language community or temporal perspective, or the permissibility of implied meanings. Still, an interpretive directive should, at a minimum, ensure coherence between the mandated objective of interpretation and the relevant sources of meaning. By neglecting to provide guidance regarding how the sources of meaning it allows or mandates may be used, as well as offering no real restrictions on the interpretive sources that may be consulted, the VCLT fails to ensure coherence between its objective of interpretation and allowable sources of meaning, and thus fails to adequately constrain interpretive discretion.

VI. CONCLUSION

The use of terms such as "ordinary meaning," "context," and "purpose" is *de rigueur* when addressing the interpretation of legal texts. An interpretive directive that employs these terms in a seemingly straightforward manner is thus likely to seem "obvious" and uncontroversial. Yet, to constrain interpretive discretion, an interpretive directive must do more than simply recite familiar interpretive concepts. Rather, it must articulate sources of meaning that are neither too narrow nor too broad in light of the chosen objective of interpretation, whether it is "ordinary meaning" or "communicative meaning." The VCLT fails to satisfy this requirement. Even if the VCLT is read as mandating communicative meaning (instead of ordinary meaning), its failure to

310. See Mortenson, *supra* note 84, at 781.

311. See *supra* Part.II.A.

312. For instance, the Supreme Court has consistently asserted that "[a]mbiguity is a creature not of definitional possibilities but of statutory context." *Brown v. Gardner*, 513 U.S. 115, 118 (1994).

meaningfully restrict the allowable sources of meaning leaves judicial interpretive discretion unconstrained. This conclusion follows not from an empirical study of cases applying the VCLT's interpretive directive, but instead from the application of principles of linguistics and communication that illustrate the shortcomings of the VCLT in light of the unaddressed tensions among its expressed concepts. Accordingly, our thesis is not based on the use of any particular cases (or some accumulation of them) but rather could as easily be illustrated by selecting other cases.

The project of articulating a well-considered concept of ordinary meaning in international law extends beyond the issues that the VCLT attempts to address. The VCLT glosses over the question of whose ordinary meaning should control in a given interpretive dispute, but this issue is critical and requires a sensitivity to the multiple forms in which it is presented. The obvious example concerns a conflict between the ordinary meanings given an explicit term by the multiple communities of language users subject to a treaty. Other manifestations of the problem are more subtle, and largely overlooked by commentators and courts, but no less important. For instance, implied meanings are a normal aspect of communication generally. Whether an implied meaning can be defended as the ordinary meaning of the language of a treaty, however, presents a contestable question that depends on assumptions about the abilities of the parties bound to treaties to understand subtle variations in meanings that transcend the explicit language, even when those parties come from different cultures and may speak the language of the treaty as a second language. As well, when language changes meaning over time, a court must decide whether a past or present community's meaning should control. These questions and others about the ordinary meaning standard in international law merit additional consideration. We hope to have started the conversation.